

AIG INSURANCE COMPANY OF CANADA

PRIVACY PRINCIPLES

AIG and Individual Privacy

We at AIG Insurance Company of Canada (referred to as "AIG", "we", "our", or "us") abide by these *Privacy Principles* and want you, our applicants, policyholders, insureds, claimants, and any other individuals who provide us with personal information (referred to as "Customers" or "you"), to be aware of how and why we handle personal information. We work hard to respect and maintain your privacy. However, the very nature of our business is such that the collection, use and disclosure of personal information are fundamental to the products and services we provide.

As a worldwide leader in the delivery of insurance products and other services, the member companies of American International Group, Inc. ("AIG Companies") offer numerous products and services to many types of consumers and clients in many different countries around the world. Therefore, differing AIG Companies may adopt differing privacy practices to fit their own jurisdiction and business requirements. The AIG Companies Privacy Policy, located at www.aig.com, may also be applicable to our Customers as we conduct our business.

For the purposes of these *Privacy Principles* personal information means information about an identified or identifiable individual. For example: an individual's name, birth date, address, age, health and financial information is personal information which AIG may collect, use and in certain circumstances, where necessary, disclose, in the course of providing insurance services and carrying on business.

1. Consent and Personal Information

AIG obtains consent for the collection, use, and disclosure of personal information, except where consent is not required by law. AIG does not obtain your consent for the collection, use and disclosure of business contact information. By applying for or purchasing AIG's products and services, you are providing your consent to our collection, use, and disclosure of your personal information as set out in these *Privacy Principles*. AIG relies on the broker's advice where the insurance broker tells AIG that we have a Customer's consent to collect information.

Consent may be obtained by AIG and its affiliated companies directly or through a broker or agent, an insurance adjuster, claims administrator, investigator, or lawyer when personal information is collected for claims purposes.

An individual may decline to consent, or revoke consent, to the collection and use of personal information for insurance purposes but in that case, insurance products and related services and the assessment of applications, claims or complaints may be limited or terminated.

2. Collecting Personal Information

We may collect information directly from the individual concerned on applications for insurance and through direct interactions with us, including via AIG websites, software applications made available by us for use on or through computers and mobile devices (the "Apps"), our social media pages set forth in the links in the footer on AIG.com and other means (for example, from

your application and claim forms, telephone calls, e-mails and other communications with us, as well as from claim investigators, medical professionals, witnesses or other third parties involved in our business dealings with you). We also collect information from various third-party sources such as: insurance brokers, adjusters, other insurance intermediaries, third party administrators, government, industry associations, and other entities that have information about you. For instance, we may obtain your driving record, claims history and/or credit history, where permitted by law, to assist us in underwriting your application for insurance. We and our service providers may supplement the personal information we collect with information from other sources, such as publicly available information from social media services, commercially available sources and information from our affiliates or business partners. This information from third parties is subject to the privacy policies under which the information was collected.

3. Using Personal Information

Personal information is typically collected and used by us for insurance purposes such as: assessing risk, processing applications for insurance coverage, establishing rates, administering insurance products, developing and improving insurance products and services and other services, including actuarial and pricing tools and risk engineering, risk management and loss prevention programs for our insurance clients, claim assessment, processing and settlement, and, where applicable, managing claim disputes. AIG also uses personal information to detect and prevent fraud, to detect, prevent, and respond to actual or suspected information security incidents, compile statistics, verify and provide information to insurance industry associations, report to regulatory or industry entities in accordance with laws and prudent insurance industry practices, and conduct market research. This may also include collecting and disclosing personal information about third parties with respect to claims made against AIG Customers. We may collect and use personal information for other purposes. We will notify you of such other purposes prior to the collection, and use of the personal information.

4. Use of Personal information for Marketing Purposes

AIG may collect and use personal information for marketing purposes, such as identifying and communicating with individuals who are most likely to find AIG products and services of interest. AIG may also disclose personal information to our affiliates to use for marketing purposes to offer you their products and services, which may be of interest to you. You may opt not to have us, or alternatively not to have our affiliates, collect, use or disclose personal information for marketing purposes in which case we and our affiliates will not use or disclose personal information for marketing purposes. Offers of upgraded or additional coverage, special offers and promotional mailings, and offers of additional products and services from our affiliates will not be sent by us or our affiliates. As an AIG customer, if you have not opted out of receiving marketing communications, you may receive marketing emails regarding AIG products and services. Each marketing email will include an unsubscribe mechanism, available for you at any time to remove your consent.

5. Accuracy of Your Personal Information

AIG maintains policies and procedures to ensure that the information we collect and use is accurate, up-to-date, and as complete as possible. However, we rely on individuals to disclose all material information to us and to inform us of any changes required. A request to access or correct your personal information in our possession may be made by contacting the Privacy Officer at the address set out below in the section titled *"Contacting the Privacy Officer,"* and by providing valid proof of your identity.

6. Safeguarding Your Information

We apply appropriate safeguards to our computer networks and physical files. We restrict access to personal information to those AIG employees and non-employee workers, independent third-party service providers or technology service providers ("Authorized Administrators") reinsurers, consultants or insurance representatives who need to know that information in order to underwrite, adjudicate or administer insurance products and services.

7. Disclosure of Personal Information

Personal information is disclosed by us to both affiliated and unaffiliated insurance companies, reinsurers, insurance and reinsurance brokers and other intermediaries and agents, appointed representatives, distributors, financial institutions and insurance industry organizations at the time of assessing an application for insurance and any renewal, extension, variation or cancellation of any issued policy, as well as in the event of any claim, to the extent necessary for statistical purposes or to assess and rate a specific risk, determine the status of coverage, and to investigate, administer and provide updates regarding claims. We also share information to investigate allegations of fraud; to detect, prevent, and respond to actual and suspected information security incidents; where permitted or required by law; to protect and defend legal claims; and, at the request of government institutions in accordance with applicable law.

AIG may retain an affiliated company, a reinsurer, or an Authorized Administrator to perform on our behalf certain functions in support of the products and services we provide. Such functions could include the underwriting, offering or administering of AIG insurance products and services or any related claims. Accordingly, in certain instances these affiliates or third parties require your personal information to the extent that it is necessary in the performance of those specific reinsurance, underwriting, marketing, consulting, administrative, analytical, rehabilitative, claims, investigation, reporting or related services. AIG obligates these affiliates and third parties to use and take steps to protect personal information in accordance with the requirements of these *Privacy Principles*.

Some AIG affiliates and Authorized Administrators may be located outside of the province in which you reside or in another foreign jurisdiction outside of Canada. When this occurs, the collection, use and disclosure of personal information will be subject to the laws of the jurisdiction in which it is situated. By communicating personal information to us, applying for and/or acquiring the products and services of AIG, you hereby consent to the AIG affiliates or Authorized Administrators located outside of Canada accessing, processing or storing your personal information (as the case may be) and disclosing such personal information as required by the governing laws of that jurisdiction. If you would like to obtain more information about our use of Authorized Administrators or any other service providers located outside of Canada, please contact the Privacy Officer at the address set out below in the section titled "*Contacting the Privacy Officer*".

AIG may transfer your personal information as an asset in connection with any contemplated or actual sale, merger or other disposal of all or part of our business or assets, or as part of a corporate reorganization or other change in corporate control, including for the purposes of determining whether to proceed with such a transaction or fulfilling any records or other reporting requirements to such parties. In such circumstances, we will ensure that any transfer of personal information is handled by us in accordance with applicable law using appropriate data protection and security measures.

8. Retention and Access to Your Personal Information

We retain personal information for the purposes described in these *Privacy Principles* but only for so long as is necessary to achieve the purpose(s) for which the personal information was collected and as required by law. Personal information is stored at one of our offices in Canada, or at a location of one of our affiliates or Authorized Administrators in the United States or another foreign country, as defined under Section 7 - "*Disclosure of Personal Information*" above. Access to your personal information is limited to our employees and non-employee workers, agents, insurance intermediaries, reinsurers, and Authorized Administrators who need access in order to perform their job or provide services.

In addition, as financial services institution, we are required to comply with regulated minimum retention periods for personal information. We will provide you with further information, if applicable, to inform you of how we collect and use your personal information.

For Example:

- If we retain personal information to comply with a regulatory requirement, we will keep the information for as long as required to comply with that obligation.
- If we retain personal information in order to provide a product or service (e.g insurance policy issuance or claims handling), we will keep the information for as long as the product or service is provided, and for a certain time period following expiry of the policy and the handling of any related claim.

The number of years varies depending on the nature of the product or service provided. For certain insurance policies it may be necessary to keep the personal information for several years after the expiry of the policy. Among other reasons, we retain the information in order to respond to any queries or concerns that may be raised at a later date with respect to the policy or the handling of a claim.

For further information about the period of time for which we retain your personal information, please contact the Privacy Officer at the address set out below in the section titled "*Contacting the Privacy Officer*"

A request to access information in our possession may be made by contacting the Privacy Officer at the address set out below in the section titled "*Contacting the Privacy Officer*". The right to access information is not absolute. Therefore, AIG may decline access to personal information about you that we have under our control, subject to any legal restrictions. Such instances of refusal may include but are not limited to the following:

- the information is subject to solicitor/client privilege;
- the information would reveal personal information about a third party;
- the information could compromise the investigation of a claim; or
- the information is confidential commercial information.

We may charge a reasonable fee in advance for copying and sending information you have requested and to which you have a right of access.

You may also request that we correct inaccurate personal information about you by contacting the Privacy Officer. The right to access information is not absolute. Therefore, AIG may decline

to modify personal information that we have about you under our control under certain circumstances, subject to any legal restrictions (for example, if we have evidence to support the fact that the personal information is accurate).

9. Contacting the Privacy Officer

Requests for further information about our privacy policies and practices, personal information access or correction, or any concerns about how we handle your information with AIG should be referred to our Privacy Officer, as follows:

Privacy Officer
Mail: AIG Insurance Company of Canada
120 Bremner Blvd.
Suite 2200
Toronto, ON
Canada M5J 0A8
Email: AIGCanadaComplaints@aig.com
Toll-free phone: 1-800-387-4481

10. Internet Privacy Practices

We may collect your personal information through AIG websites or mobile applications. All personal information collected through our websites and mobile applications are subject to these *Privacy Principles*.

We may collect other personal information ("**Other Information**") through our websites or mobile applications that may or may not reveal your specific identity. Other Information includes but is not limited to:

- browser information and settings;
- computer or mobile device information (such as device IDs)
- information collected through cookies, pixel tags, and other technologies;
- demographic information and other similar information provided by you;
- information about your physical location; and
- aggregated information.

We and our third party service providers may collect Other Information in a variety of ways, including, but not limited to, the following:

- **Through your internet browser:** Certain information is collected by us through your internet browser by most websites, such as your IP address (that is, your computer's address on the internet), screen resolution, operating system type (e.g., Windows or Mac OS) and version, internet browser type and version, time of the visit and the page or pages visited. We use this information for purposes such as calculating our website usage levels, helping diagnose server problems, and administering our website.
- **Using cookies:** Cookies are pieces of information stored directly on the computer you are using. Cookies allow us to recognize your computer and to collect information such as internet browser type, time spent on our website, pages visited, and language preferences. We may use the information for security purposes, to facilitate navigation, to display information more effectively, to personalize your experience while visiting our

website, or to gather statistical information about the usage of our website. Cookies further allow us to present to you the advertisements or offers that are most likely to appeal to you. We may also use cookies to track your responses to our advertisements and we may use cookies or other files to track your use of other websites.

- **From you:** Some information (for example, your location or preferred means of communication) is collected when you voluntarily provide it. Unless combined with personal information, this information may not identify you personally.
- **Using your physical location:** We may collect the physical location of your device by, for example, using satellite GPS, cell phone tower or WiFi signals. We may use your device's physical location to provide you with personalized location-based services and content, for example, to provide location based reminders or offers when using applications. We may also share your device's physical location, combined with information about what advertisements you viewed and other information we collect, with our marketing partners to enable them to provide you with more personalized content on our behalf and to study the effectiveness of advertising campaigns. In some instances, you may be permitted to allow or deny such uses and/or sharing of your device's location, but if you choose to deny such uses and/or sharing, we and/or our marketing partners may not be able to provide you with the applicable personalized services and content. In addition, we may obtain the precise geolocation of your device when you use our mobile applications for purposes of providing travel or other assistance services to our clients who are enrolled in such services. In connection with providing travel or other assistance services, we may share your device's precise geolocation information with our clients and other entities with whom we work. You may opt-out of our collection and sharing of precise geolocation information by deleting the mobile application from your device, by disallowing the mobile application to access location services through the permission system used by your device's operating system, or by following any additional opt-out instructions provided in the privacy notice available within the mobile application.
- **By aggregating information:** We may share non-personally identifiable information collected from you and/or from your use of our Apps with our third party service providers in an anonymous and aggregated form for data analytics and to ensure you receive a better consumer experience, in order to improve and modify our products and services.

Please note that we may use and disclose Other Information for any purpose, except where we are required to do otherwise under applicable law. If we are required to treat Other Information as personal information under applicable law, then, in addition to the uses listed in this *"Website Privacy Practices"* section, we may use and disclose Other Information for all the purposes for which we use and disclose personal information.

11. Third Party Websites

These *Privacy Principles* do not address, and we are not responsible for, the privacy, information or other practices of any third parties, including any third party operating any website to which our website contains a link. The inclusion of a link on our website does not imply endorsement of the linked site by us or by our group companies.

12. Use of Site by Minors

Our website is not directed to individuals under the age of 18, and we request that these individuals do not provide personal information through our website.

13. Access Requests and Automated Decision Making

- You may submit a request to be informed of the types of personnel who may have access to your personal information within AIG.
- You may request that AIG cease disseminating your personal information or de-index any hyperlink attached to your name if the dissemination of the information contravenes the law or a court order. Under certain conditions prescribed by law, you may request AIG re-index the hyperlink to provide access to your personal information.
- As part of our business operations, we may render a decision based exclusively on an automated processing of your personal information. These decisions are made using automated computer software and systems without independent human judgment so that we may determine the type of product or services we are able to offer you.
When automated decision making is used, we will provide you with more information prior to or at the time we intend to make the decision. You have the right to submit questions, comments, or complaints to the Privacy Officer at the address set out above in the section titled "Contacting the Privacy Officer".

14. Changes to these Privacy Principles

AIG Canada reserves the right to modify these *Privacy Principles* from time to time. If these *Privacy Principles* change materially, we will take reasonable measures to notify you, including posting a copy of the revised *Privacy Principles* to our website. Accordingly, we recommend that you review our current *Privacy Principles* from time to time at Aig.ca.

LA COMPAGNIE D'ASSURANCE AIG DU CANADA

PRINCIPES DE PROTECTION DES RENSEIGNEMENTS PERSONNELS

AIG et la protection des renseignements personnels

Nous, chez La Compagnie d'assurance AIG du Canada (désignée sous le nom d'« AIG », « nous », « notre » ou « nos »), nous conformons aux présents *Principes de protection des renseignements personnels* et nous voulons que nos proposants, nos titulaires de polices, nos assurés, nos demandeurs et toute autre personne nous ayant fourni des renseignements personnels (désignés sous le nom de « Clients » ou « vous »), soient au courant non seulement de la façon dont nous traitons les renseignements personnels, mais aussi des raisons pour lesquelles nous recueillons lesdits renseignements. Nous consacrons beaucoup d'efforts au respect et au maintien de la confidentialité de vos renseignements personnels. Cependant, en raison de la nature même de notre entreprise, le processus de cueillette, d'utilisation et de divulgation de renseignements personnels est fondamental aux produits et services que nous fournissons.

Nous sommes un chef de file mondial dans la fourniture de produits d'assurance et autres services et, à ce titre, les compagnies membres de l'American International Group, Inc. (les « sociétés AIG ») offrent de nombreux produits et services à plusieurs types de consommateurs et clients dans différents pays partout dans le monde. En conséquence, les différentes sociétés AIG peuvent adopter différentes pratiques en matière de protection des renseignements personnels pour s'adapter à leur propre juridiction et aux exigences de leurs entreprises. Les *Principes de protection des renseignements personnels* des sociétés AIG, disponibles sur notre site, www.aig.com, peuvent également s'appliquer à nos Clients dans l'exercice de nos activités d'entreprise.

Pour les fins des présents *Principes de protection des renseignements personnels*, l'expression « renseignements personnels » signifie des renseignements concernant une personne identifiée ou identifiable. Par exemple, le nom d'un particulier, sa date de naissance, son adresse, son âge, son état de santé et ses renseignements financiers constituent des renseignements personnels qu'AIG peut recueillir, utiliser et dans certaines circonstances, si nécessaire, divulguer, dans le cadre de la fourniture de services d'assurance et dans le cours normal de ses affaires.

1. Consentement et renseignements personnels

AIG obtient le consentement pour la cueillette, l'utilisation et la divulgation de renseignements personnels, sauf dans les cas où le consentement n'est pas requis par la loi. Par exemple, AIG n'obtient pas votre consentement pour la cueillette, l'utilisation et la divulgation de vos coordonnées d'affaires. En présentant une proposition ou en faisant l'acquisition de produits et services d'AIG, vous nous donnez votre consentement à la cueillette, à l'utilisation et à la divulgation de vos renseignements personnels, tel que décrit aux présents *Principes de protection des renseignements personnels*. AIG se fie à l'avis du courtier lorsque le courtier d'assurance indique à AIG que le Client nous a donné son consentement pour la cueillette des renseignements.

Le consentement peut être obtenu par AIG et par ses sociétés affiliées directement ou par l'entremise du courtier ou mandataire, d'un expert en sinistres, d'un rédacteur sinistre, d'un enquêteur ou d'un avocat, lorsque les renseignements personnels sont recueillis aux fins d'une réclamation.

Un particulier peut refuser de consentir à la cueillette et à l'utilisation de renseignements personnels à des fins d'assurance ou retirer son consentement, mais dans de tels cas, les produits d'assurance et les services connexes, ainsi que l'étude des propositions, des réclamations ou des plaintes peuvent être limités ou terminés.

2. La cueillette des renseignements personnels

Nous pourrions recueillir les renseignements directement du particulier concerné, sur les propositions d'assurance et par l'entremise d'interactions directes avec nous, y compris par l'entremise de sites Web d'AIG, d'applications logicielles que nous mettons à votre disposition à des fins d'utilisation sur des ordinateurs et des appareils mobiles (les « applications »), de nos pages de médias sociaux dont les liens figurent dans le pied de page du site AIG.com et par l'entremise de tout autre moyen (comme par exemple, dans le cadre de votre proposition d'assurance ou de vos formulaires de demande d'indemnisation, de vos appels téléphoniques, de vos courriels et autres communications avec nous, ainsi que par l'entremise des enquêteurs, des professionnels de la santé, des témoins ou d'autres tiers avec qui nous transigeons pour faire affaires avec vous). Nous recueillons également des renseignements de diverses autres sources, tels les courtiers d'assurance, les experts en sinistres ou autres intermédiaires, les tiers administrateurs, le gouvernement, les associations de l'industrie et autres entités qui détiennent des renseignements à propos de vous. Par exemple, lorsque cela est permis par la loi et afin de nous aider dans la souscription de votre proposition d'assurance, nous pouvons obtenir votre dossier de conduite, l'historique de vos réclamations et vos antécédents en matière de crédit. Nous, et nos fournisseurs de services pouvons compléter les renseignements personnels que nous recueillons avec des renseignements provenant d'autres sources, tels que les renseignements accessibles au public des services de médias sociaux, des sources commerciales disponibles et des renseignements provenant de nos filiales ou partenaires commerciaux. Lesdits renseignements provenant de tierces parties sont assujettis aux politiques de protection de la vie privée en vertu desquelles les renseignements ont été recueillis.

3. L'utilisation des renseignements personnels

En règle générale, nous recueillons et utilisons les renseignements personnels à des fins d'assurance, telles que : l'évaluation des risques, le traitement des propositions d'assurance, la tarification, l'administration des produits d'assurance, l'élaboration et l'amélioration des produits et services d'assurance et autres services, y compris les outils actuariels et de fixation des prix et les programmes d'ingénierie des risques, de gestion des risques et de prévention des sinistres pour nos clients, l'évaluation, le traitement et le règlement des réclamations, et, le cas échéant, la gestion des litiges liés aux réclamations. AIG utilise également les renseignements personnels afin de détecter et de prévenir la fraude, pour détecter, prévenir et répondre aux incidents réels ou soupçonnés en matière de sécurité des informations, de compiler des statistiques, de vérifier et de fournir des renseignements aux associations de l'industrie de l'assurance, de faire rapport aux entités de réglementation ou aux entités de l'industrie conformément aux lois et aux pratiques de prudence de l'industrie de l'assurance, et pour effectuer des études de marché. Cela peut également inclure la cueillette et la divulgation de renseignements personnels

à propos de tierces parties relativement à des réclamations présentées contre des Clients d'AIG. Il se peut que AIG recueille et utilise des renseignements personnels à d'autres fins, auquel cas nous vous informerons de ces autres fins avant la cueillette et l'utilisation des renseignements personnels.

4. L'utilisation des renseignements personnels à des fins de commercialisation

AIG peut recueillir et utiliser des renseignements personnels à des fins de commercialisation, telles que l'identification des particuliers qui sont les plus susceptibles de porter un intérêt aux produits et services d'AIG et la communication avec ces derniers. AIG peut aussi divulguer des renseignements personnels à ses filiales qui les utiliseront à des fins de commercialisation, pour vous offrir certains de leurs produits et services qui pourraient vous intéresser. Vous pouvez choisir de ne pas nous permettre ou, dans l'alternative, de ne pas permettre à nos filiales de recueillir, d'utiliser ou de divulguer des renseignements personnels à des fins de commercialisation, et dans ce cas, nous, ainsi que nos filiales n'utiliserons ni ne divulguons les renseignements personnels à des fins de commercialisation. Ni nous, ni nos filiales, ne vous enverrons d'offres de garanties améliorées ou complémentaires, d'offres spéciales ou d'offres promotionnelles par publipostage, ni d'offres de produits et services supplémentaires de nos filiales. En tant que Client d'AIG, si vous n'avez pas choisi de recevoir des communications commerciales, vous pourriez recevoir des courriels promotionnels concernant des produits et des services offerts par AIG. Vous trouverez une option de désabonnement au bas de chacun de nos courriels, laquelle vous permet de révoquer votre consentement en tout temps.

5. Exactitude de vos renseignements personnels

AIG maintient des politiques et procédures afin de s'assurer que les renseignements que nous recueillons et utilisons soient exacts, à jour, et aussi complets que possible. Cependant, nous nous fions aux particuliers pour qu'ils nous dévoilent tous les renseignements significatifs et nous informent de toute modification nécessaire. Une demande d'accès à, ou de correction de vos renseignements personnels en notre possession peut être présentée en communiquant avec le Responsable de la protection des renseignements personnels à l'adresse indiquée ci-après à la rubrique « *Communiquer avec le Responsable de la protection des renseignements personnels* » et en nous fournissant une preuve valable de votre identité.

6. La protection de vos renseignements personnels

Nous appliquons les dispositifs de sécurité appropriés à nos réseaux informatiques et à nos dossiers physiques et nous limitons l'accès aux renseignements personnels aux employés d'AIG, et aux employés sous contrat avec AIG, à des prestataires de services tiers indépendants ou à des fournisseurs de services technologiques (« administrateur(s) autorisé(s) »), aux réassureurs, aux conseillers ou aux conseillers d'assurance qui ont besoin desdits renseignements pour leur permettre de souscrire ou d'administrer des produits et des services d'assurance ou de statuer sur une réclamation.

7. Divulcation de renseignements personnels

Les renseignements personnels sont divulgués, tant avec les compagnies d'assurance affiliées qu'indépendantes, qu'avec les réassureurs, les courtiers en assurance et en réassurance et autres intermédiaires et mandataires, les distributeurs et représentants nommés, les institutions financières et les organisations de l'industrie de l'assurance au moment d'évaluer

une proposition d'assurance et tout renouvellement, toute prolongation, toute modification ou toute résiliation d'un contrat déjà établi, ainsi que dans l'éventualité d'une réclamation, dans la mesure nécessaire aux fins des statistiques ou de l'évaluation et de la tarification d'un risque particulier, de la détermination du statut de l'assurance, et de l'étude, de l'administration et de la fourniture de mises à jour concernant les réclamations. Nous divulguons également des renseignements afin d'enquêter en cas d'allégation de fraude, pour détecter, prévenir et répondre aux incidents réels ou soupçonnés en matière de sécurité des informations, là où la loi l'autorise ou l'exige ou encore, à la demande d'institutions gouvernementales conformément à la loi applicable.

AIG peut retenir les services d'une compagnie affiliée, d'un réassureur ou d'un administrateur autorisé pour accomplir certaines fonctions en notre nom à l'appui des produits et services que nous offrons. Ces fonctions pourraient inclure la souscription, l'offre ou l'administration des produits et services d'assurance d'AIG ou de toute réclamation connexe. En conséquence, dans certains cas, ces compagnies affiliées ou tiers demandent vos renseignements personnels dans la mesure nécessaire pour la prestation de ces services spécifiques de réassurance, de souscription, de commercialisation, de consultation, d'administration, d'analyse, de réadaptation, de réclamations, d'investigation, de rapport ou de tout autre service connexe. AIG oblige ces compagnies affiliées et ces tiers à utiliser et à prendre des mesures afin de protéger les renseignements personnels conformément aux exigences des présents *Principes de protection des renseignements personnels*.

Certaines compagnies affiliées de même que certains administrateurs autorisés peuvent se trouver hors de la province dans laquelle vous résidez ou dans une autre juridiction étrangère à l'extérieur du Canada. Dans ce cas, la cueillette, l'utilisation et la divulgation de renseignements personnels seront assujetties aux lois de la juridiction en question. En nous communiquant des renseignements personnels, en présentant une proposition ou en souscrivant des produits et des services d'AIG, vous consentez par les présentes à ce que les compagnies affiliées d'AIG ou les administrateurs autorisés se trouvant à l'extérieur du Canada accèdent à vos renseignements personnels, les traitent ou les conservent (selon le cas) et les divulguent tel que requis par les lois applicables à leur juridiction. Si vous souhaitez obtenir de plus amples renseignements sur notre utilisation des administrateurs autorisés ou de tout autre fournisseur de services situé à l'extérieur du Canada, veuillez communiquer avec l'agent de la protection des renseignements personnels à l'adresse ci-dessous, dans la section intitulée « *Communiquer avec l'agent de protection de la vie privée* ».

AIG pourrait transférer vos renseignements personnels en tant qu'actif dans le cadre de toute vente, de toute fusion ou de toute autre disposition, envisagée ou en cours, de la totalité ou d'une partie de notre clientèle ou de nos biens, ou encore dans le cadre d'une réorganisation de l'entreprise ou de tout autre changement associé au contrôle de l'entreprise, dans le but de déterminer si l'on doit conclure ladite transaction avec les parties en question ou donner suite à toute exigence de leur part en matière de dossiers ou d'autres déclarations. En pareil cas, nous veillerons à ce que le transfert de renseignements personnels soit conforme aux lois en vigueur et nous adopterons des protocoles appropriés de protection et de sécurité des données.

8. Conservation et accès à vos renseignements personnels

Nous conservons vos renseignements personnels aux fins décrites aux présents *Principes de protection des renseignements personnels*, mais seulement pour la période nécessaire pour atteindre le ou les objectifs pour lesquels les renseignements personnels ont été recueillis

conformément à la loi applicable. Les renseignements personnels sont stockés à l'un de nos bureaux au Canada ou à l'emplacement de l'une de nos sociétés affiliées ou administrateurs autorisés aux États-Unis ou dans un autre pays, tel que défini aux termes de la rubrique 7 « *Divulgarion de renseignements personnels* » précédente. L'accès à vos renseignements personnels est limité à nos employés, employés sous contrat, mandataires, intermédiaires d'assurance, réassureurs, administrateurs autorisés qui ont besoin d'y accéder afin d'effectuer leur travail ou de nous fournir des services.

De plus, en tant qu'institution de services financiers, nous sommes tenus de respecter les périodes minimales de conservation réglementées des informations personnelles. Nous vous fournirons des informations supplémentaires, le cas échéant, pour vous informer de la manière dont nous collectons et utilisons vos informations personnelles.

Par exemple:

- Si nous conservons des informations personnelles pour nous conformer à une exigence réglementaire, nous conserverons ces informations aussi longtemps que nécessaire pour nous conformer à cette obligation.
- Si nous conservons des informations personnelles afin de fournir un produit ou un service (par exemple, l'émission d'une police d'assurance ou le traitement des réclamations), nous conserverons ces informations aussi longtemps que le produit ou le service est fourni, et pendant une certaine période après l'expiration de la période de validité de la police et le traitement de toute réclamation connexe.

Le nombre d'années varie selon la nature du produit ou du service fourni. Pour certains contrats d'assurance, il peut être nécessaire de conserver les informations personnelles pendant plusieurs années après l'expiration du contrat. Entre autres raisons, nous conservons les informations afin de répondre à toute question ou préoccupation qui pourrait être soulevée ultérieurement concernant la police ou le traitement d'une réclamation.

Pour plus d'informations sur la période pendant laquelle nous conservons vos informations personnelles, veuillez contacter le responsable de la confidentialité à l'adresse indiquée ci-dessous dans la section intitulée « *Communiquer avec le Responsable de la protection des renseignements personnels* ».

Une demande d'accès aux renseignements en notre possession peut être présentée en communiquant avec le Responsable de la protection des renseignements personnels à l'adresse indiquée ci-après à la rubrique « *Communiquer avec le Responsable de la protection des renseignements personnels* ». Le droit d'accès aux renseignements n'est pas absolu. Par conséquent, AIG peut refuser une demande d'accès si les renseignements personnels à votre sujet qui sont sous notre contrôle font l'objet de restrictions juridiques. De telles situations de refus peuvent inclure mais ne sont pas limitées à :

- des renseignements qui sont assujettis à un privilège avocat/client;
- des renseignements qui révéleraient des renseignements personnels au sujet d'une tierce partie;
- des renseignements qui pourraient compromettre l'étude d'une réclamation; ou
- des renseignements confidentiels de nature commerciale.

Nous pouvons vous facturer à l'avance des frais raisonnables pour copier et transmettre les renseignements que vous avez demandés et auxquels vous avez un droit d'accès.

Vous pouvez également nous demander de corriger des renseignements personnels inexacts vous concernant en contactant le responsable de la protection des renseignements personnels. Le droit d'accès aux informations n'est pas absolu. Par conséquent, AIG peut refuser de modifier les renseignements personnels que nous détenons à votre sujet sous notre contrôle dans certaines circonstances, sous réserve de toute restriction légale (par exemple, si nous avons des preuves pour étayer le fait que les informations personnelles sont exactes).

9. Communiquer avec le Responsable de la protection des renseignements personnels

Les demandes de renseignements supplémentaires, les demandes d'accès aux renseignements personnels ou les questions portant sur nos politiques et procédures et la façon dont nous traitons vos renseignements chez AIG devraient être adressées à notre Responsable de la protection des renseignements personnels comme suit :

Responsable de la protection des renseignements personnels
Poste : La Compagnie d'assurance AIG du Canada
120 Bremner Blvd.
Bureau 2200
Toronto, Ontario
Canada M5J 0A8
Courriel : AIGCanadaComplaints@aig.com
Sans frais : 1-800-387-4481.

10. Principes de protection des renseignements personnels liés à l'Internet

Nous pourrions recueillir des renseignements personnels à votre sujet par l'entremise de sites Web ou d'applications pour appareils mobiles d'AIG. Tous les renseignements personnels recueillis par l'entremise de nos sites Web et de nos applications pour appareils mobiles sont assujettis aux présents *Principes de protection des renseignements personnels*.

Nous pourrions recueillir d'autres renseignements personnels (« **autres renseignements** ») qui pourraient ou ne pourraient pas dévoiler l'identité du particulier par l'entremise de nos sites Web ou de nos applications pour appareils mobiles. Les autres renseignements englobent sans s'y limiter :

- les renseignements recueillis au moyen du navigateur Web et paramètres;
- des renseignements recueillis de l'ordinateur ou de l'appareil mobile (telles que les identifiants de l'appareil)
- les renseignements recueillis par l'entremise de fichiers témoins, de balises Web (pixels invisibles) et d'autres technologies;
- les renseignements démographiques et autres renseignements semblables que vous nous avez fournis;
- les renseignements sur votre emplacement physique; et
- le cumul des renseignements.

Nous et nos fournisseurs de services de tierce partie pourrions recueillir d'autres renseignements par divers moyens, dont les suivants mais pas nécessairement limités aux suivants :

- **Par l'entremise de votre navigateur Internet** : La plupart des sites Internet recueillent certains renseignements par l'entremise de votre navigateur Internet, notamment votre adresse IP (c'est-à-dire, l'adresse Internet de votre ordinateur), la résolution de votre écran, le type de votre système d'exploitation (par exemple, Windows ou Mac OS) et sa version, le type et la version de votre navigateur Internet, l'heure de votre visite, ainsi que la ou les pages consultées. Nous utilisons ces renseignements pour calculer les niveaux d'utilisation de notre site Internet, pour nous aider à diagnostiquer les problèmes de serveur et pour gérer notre site Internet.
- **Utilisation de cookies** : Les cookies sont des données stockées directement sur l'ordinateur que vous utilisez. Les cookies nous permettent de reconnaître votre ordinateur et de recueillir certains renseignements, notamment le type de navigateur que vous utilisez, le temps passé sur notre site Internet, les pages consultées et les préférences linguistiques. Nous pourrions utiliser ces renseignements à des fins de sécurité, pour faciliter la navigation, afficher des renseignements de façon plus efficace, personnaliser votre expérience pendant que vous visitez notre site Internet ou encore pour recueillir des renseignements sur l'utilisation de notre site à des fins de statistiques. Les cookies nous permettent également de vous présenter des messages publicitaires ou des offres qui sont les plus susceptibles de vous intéresser. Nous pourrions aussi utiliser des cookies pour effectuer un suivi de vos réponses à nos publicités, et nous pourrions nous servir des cookies ou d'autres fichiers pour nous enquérir de votre fréquentation d'autres sites Internet.
- **Renseignements de votre part** : Certains renseignements (par exemple, votre emplacement ou votre méthode de communication préférée) sont recueillis lorsque vous nous les fournissez de plein gré. Sauf dans les cas où ils sont jumelés à des renseignements personnels, ces renseignements pourraient ne pas vous identifier spécifiquement.
- **Utilisation de votre emplacement personnel** : Nous pourrions recueillir des renseignements relatifs à votre emplacement, notamment à l'aide de signaux par satellite GPS, par tour de transmission cellulaire ou par WiFi. Nous pourrions utiliser l'emplacement physique de votre appareil pour vous offrir des services et du contenu personnalisés en fonction de votre emplacement, notamment pour vous transmettre des rappels liés à l'emplacement ou des offres lorsque vous utilisez des applications. Nous pourrions également divulguer l'emplacement physique de votre appareil, ainsi que des renseignements sur les publicités visionnées qui, jumelés aux autres renseignements que nous recueillons conjointement avec nos partenaires de commercialisation, leur permettent de vous fournir de notre part du contenu plus personnalisé et d'évaluer l'efficacité de nos campagnes publicitaires. Dans certains cas, vous pourriez avoir le choix de permettre ou de refuser de telles utilisations et la divulgation de l'emplacement de votre appareil, mais si vous refusez de consentir à de telles utilisations et divulgations, nos partenaires de commercialisation et nous pourrions être incapables de vous fournir les services et le contenu personnalisés en question. En outre, nous pourrions obtenir la géolocalisation précise de votre appareil lorsque vous utilisez nos applications pour appareils mobiles, et ce, afin de fournir des services d'assistance voyage ou autres à ceux de nos clients qui souscrivent à de tels services. Dans le cadre de la prestation de services d'assistance voyage ou autres, nous pourrions divulguer les renseignements liés à la géolocalisation précise de votre appareil à nos clients et à d'autres entités avec qui nous travaillons. Vous pouvez refuser de consentir à la

cueillette et la divulgation de renseignements liés à la géolocalisation précise en supprimant l'application de votre appareil mobile, en refusant de permettre à l'application pour appareil mobile d'accéder aux services de localisation à l'aide du système d'autorisation qu'utilise le système d'exploitation de votre appareil ou en suivant toutes directives supplémentaires de retrait figurant à l'avis de protection de la vie privée qui est affiché dans l'application pour appareils mobiles.

- **Cumul des renseignements** : Nous pourrions divulguer à nos fournisseurs de services de tierce partie des renseignements qui n'identifient aucune personne en particulier et que nous avons recueillis auprès de vous et/ou par votre utilisation de nos applications, dans un format cumulé et anonyme propice à l'usage et l'analyse de données et pour faire en sorte de vous offrir une meilleure expérience client, tout en nous permettant d'apporter des améliorations et des modifications à nos produits et services.

Veuillez noter que nous pourrions utiliser et divulguer d'autres renseignements à toute autre fin, sauf lorsque nous sommes tenus d'agir autrement en vertu des lois applicables. Si nous sommes dans l'obligation de traiter d'autres renseignements à titre de renseignements personnels en vertu des lois applicables, alors, en plus des utilisations énumérées à la présente rubrique « *Principes de protection des renseignements personnels à l'égard de l'Internet* », nous pourrions utiliser et divulguer d'autres renseignements à toutes les fins auxquelles nous utilisons et divulguons lesdits renseignements personnels.

11. Sites Internet de tierces parties

Les présents *Principes de protection des renseignements personnels* n'abordent pas les pratiques de confidentialité et de protection des renseignements personnels ou toute autre pratique à cet égard adoptée par de tierces parties, y compris toute tierce partie exploitant tout site Internet visé par un lien figurant sur notre site Internet, et nous n'assumons aucune responsabilité à ce chapitre. L'affichage d'un lien sur notre site Internet ne signifie aucunement que nous approuvons le site visé par ledit lien figurant à notre site Internet ou à celui d'autres sociétés membres de notre groupe.

12. Utilisation du site par des mineurs

Notre site Internet n'est pas destiné à des personnes âgées de moins de 18 ans et nous demandons à ces personnes de ne fournir aucun renseignement personnel par l'entremise de notre site Internet.

13. Demandes d'accès et prise de décision automatisée

- Vous pouvez soumettre une demande pour être informé des types de personnel qui peuvent avoir accès à vos informations personnelles au sein d'AIG.
- Vous pouvez demander à AIG de cesser de diffuser vos informations personnelles ou de désindexer tout lien hypertexte attaché à votre nom si la diffusion de ces informations contrevient à la loi ou à une ordonnance d'un tribunal. Sous certaines conditions prescrites par la loi, vous pouvez demander à AIG de réindexer l'hyperlien pour donner accès à vos informations personnelles.
- Dans le cadre de nos opérations commerciales, nous pouvons prendre une décision basée exclusivement sur un traitement automatisé de vos informations personnelles. Ces décisions sont prises à l'aide de logiciels et de systèmes informatiques automatisés sans jugement humain indépendant afin que nous puissions déterminer le type de produit ou de services que nous sommes en mesure de vous offrir.

Lorsque la prise de décision automatisée est utilisée, nous vous fournirons plus d'informations avant ou au moment où nous avons l'intention de prendre la décision. Vous avez le droit de soumettre des questions, des commentaires ou des plaintes au Responsable de la protection des renseignements personnels à l'adresse indiquée ci-dessus dans la section intitulée « Contacter le responsable de la confidentialité ».

14. Modifications apportées aux présents Principes de protection des renseignements personnels

AIG Canada se réserve le droit d'apporter, de temps à autre, des modifications aux présents *Principes de protection des renseignements personnels*. Si lesdits *Principes de protection des renseignements personnels* sont modifiés de façon importante, nous prendrons des mesures raisonnables pour vous en aviser en affichant notamment une version à jour des *Principes de protection des renseignements personnels* sur notre site Internet. Nous vous recommandons donc de passer en revue notre version la plus récente des *Principes de protection des renseignements personnels* de temps à autre en accédant à Aig.ca.



AIG Insurance Company of Canada
(the "Insurer")

POLICY NUMBER: 01-590-53-35

REPLACEMENT OF POLICY NUMBER: 01-970-37-72

Employment EdgeSM

Employment Practices Liability Insurance Policy

NOTICES: THIS POLICY CONTAINS A CLAUSE OR CLAUSES WHICH MAY LIMIT THE AMOUNT PAYABLE. This policy provides claims-made coverage. Such coverage is generally limited to liability for (i) **Claims** first made against **Insureds** and (ii) **Crises** first occurring, in each case, during the **Policy Period** or, if applicable, the **Discovery Period**. Coverage under this policy is conditioned upon notice being timely provided to the **Insurer** as required (see the Notice and Reporting clause for details). Covered **Defence Costs** shall reduce the **Limits of Liability** available to pay judgments or settlements, and shall be applied against the retention amount. The **Insurer** does not assume any duty to defend. Please read this policy carefully and review its coverage with your insurance agent or broker.

DECLARATIONS

1. **NAMED ENTITY:** *EQUINOX GOLD CORP*

Named Entity Address: *SUITE 1501
700 WEST PENDER ST
VANCOUVER, BC V6C -1G8*
Province or Territory of Formation: *British Columbia*

2. **POLICY PERIOD:** From: *November 17, 2025* To: *November 17, 2026*
The **Policy Period** incepts and expires as of 12:01 A.M. at the **Named Entity Address**.

3. **PREMIUM:** *\$39,900 US*

4. **LIMIT OF LIABILITY:** *\$5,000,000 US*

5. **RETENTION:** Not applicable to: (i) **Crisis Loss** or (ii) the first \$25,000 in **Defence Costs** incurred as **E-Discovery Consultant Services**

(a) Class Action Retention:	<i>\$150,000 US</i>
(b) Third Party Retention:	<i>\$150,000 US</i>
(c) US Retention:	<i>\$150,000 US</i>
(d) All other Loss to which a Retention applies:	<i>\$100,000 US</i>

If the **Organization** is unable to pay an applicable Retention due to **Financial Insolvency**, this policy shall advance the **Loss** pursuant to the RETENTION Clause.

6. **PASSPORT:** This policy ☐ serves, or ☒ does not serve, as a master Passport policy.

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DECLARATIONS (Continued)

7. INSURER

(a) **INSURER ADDRESS:** *Canadian Head Office
120 Bremner Boulevard Suite 2200
Toronto, ON M5J -0A8*

(b) **CLAIMS ADDRESS:** By E-Mail: financialclaimsCA@aig.com

By Mail: *AIG, Financial Lines Claims
120 Bremner Boulevard, Suite 2200
Toronto, ON M5J 0A8*

In either case, reference the Policy Number.

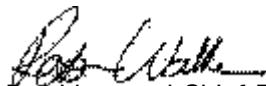
8. PENDING AND PRIOR DATES

(a) **Outside Entity Executive Coverage**--The date on which the **Executive** first served as an **Outside Entity Executive** of such **Outside Entity**.

(b) All other coverage: *October 30, 2018*

All limits of insurance, premiums and other sums of money as expressed in this policy are in Canadian currency unless otherwise stated in writing.

By signing below, the President and Chief Executive Officer of the Insurer agrees on behalf of the Insurer to all the terms of this Policy.



President and Chief Executive Officer
AIG Insurance Company of Canada

TORONTO

Signed At

December 15, 2025

Date

*AON REED STENHOUSE INC.
1803 DOUGLAS ST
FL 6
VICTORIA, BC V8T 5C3*

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Employment EdgeSM

EMPLOYMENT PRACTICES LIABILITY INSURANCE POLICY

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In consideration of the payment of the premium, and each of their respective rights and obligations in this policy, the **Insureds** and the **Insurer** agree as follows:

1. INSURING AGREEMENTS

Coverage granted for **Loss** under this policy is provided solely with respect to: (i) **Claims** first made against an **Insured**, and (ii) **Crises** first occurring, in each such event, during the **Policy Period** or any applicable **Discovery Period** and reported to the **Insurer** as required by this policy, except to the extent coverage is extended pursuant to Clause 6(c) of this policy to a **Claim** first made prior to the **Policy Period**. Subject to the foregoing and the other terms, conditions and limitations of this policy, this policy affords the following coverage:

A. *Employment Practices Liability Coverage*

This policy shall pay the **Loss** of each and every **Insured** arising from a **Claim** made against such **Insured** for any **Employment Practices Violation**.

B. *Third Party Violation Coverage*

This policy shall pay the **Loss** of each and every **Insured** arising from a **Claim** made against such **Insured** for any **Third Party Violation**.

C. *Wrongful Internet Activity Coverage*

This policy shall pay the **Loss** of an **Organization** arising from any **Claim** made against such **Organization** for its actual or alleged liability for any **Wrongful Internet Activity** of an **Employee**.

D. *Crisisfund® Coverage*

This policy shall pay the **Crisis Loss** of an **Organization** in connection with an **Employment Practices Crisis**, a **Workplace Violence Crisis** or an **Employee Information Breach Crisis**, up to the amount of the **CrisisFund®**; provided that payment of any **Crisis Loss** under this policy shall not waive any of the **Insurer's** rights under this policy or at law.

2. EXTENSIONS

A. *First Dollar E-Discovery Consultant Services*

For any **Class Action Claim**, no Retention shall apply to the first \$25,000 in **Defence Costs** incurred as **E-Discovery Consultant Services**.

B. *Worldwide & Cross-Border*

Worldwide Territory The coverage afforded by this policy shall apply anywhere in the world.

Global Liberalization For **Loss** from that portion of any **Claim** maintained in a **Foreign Jurisdiction** or to which the law of a **Foreign Jurisdiction** is applied, the **Insurer** shall apply the terms and conditions of this policy as amended to include those of the **Foreign Policy** in the **Foreign Jurisdiction** that are more favourable to **Insureds** in the **Foreign Jurisdiction**. This *Global Liberalization Clause* shall not apply to any provision of any policy that has worldwide effect, including but not limited to any provision addressing limits of liability (primary, excess or sublimits), retentions, other insurance, non-renewal, duty to defend,



defence within or outside limits, taxes, conformance to law or to excess liability coverage, claims made provisions, and any endorsement to this policy that excludes or limits coverage for specific events or litigation or that specifically states that it will have worldwide effect.

*Passport Master
Policy Program*

If the Passport option box has been checked on the Declarations, then this policy shall act as a master policy and the coverage afforded by this policy shall be provided in conjunction with the Passport foreign underlyer policy issued in each jurisdiction selected by the **Named Entity**. The specific structure of the coverage provided by this master policy in conjunction with each Passport foreign underlyer policy is set forth in the Passport Structure Appendix attached to this policy.

3. EXCLUSIONS

The **Insurer** shall not be liable to make any payment for **Loss**, other than **Crisis Loss**, in connection with any **Claim** made against an **Insured**:

- (1) *Conduct* arising out of, based upon or attributable to any deliberate criminal or deliberate fraudulent act by the **Insured** if established by any final, non-appealable adjudication in any action or proceeding other than an action or proceeding initiated by the **Insurer** to determine coverage under the policy; provided, however, the **Wrongful Act** of an **Insured** shall not be imputed to any other **Insured** for the purpose of determining the applicability of this exclusion;
- (2) *Pending & Prior Litigation* alleging, arising out of, based upon or attributable to, as of the **Pending and Prior Date**, any pending or prior: (a) litigation; or (b) **Enforcement Agency** proceeding, hearing or investigation of which any **Insured** had notice; or alleging or derived from the same or essentially the same facts as alleged in such pending or prior litigation or proceeding or investigation;
- (3) *Prior Notice* alleging, arising out of, based upon or attributable to the facts alleged, or to the same or related **Wrongful Act** alleged or contained in any claim which has been reported, or in any circumstances of which notice has been given, under any policy providing coverage in whole or in part for **Wrongful Acts** which was in force prior to the inception date of this policy;
- (4) *Bodily Injury & Property Damage* for bodily injury (other than emotional distress or mental anguish), sickness, disease, or death of any person, or damage to or destruction of any tangible property, including the loss of use thereof;
- (5) *Pension Liability* for any violation of responsibilities, obligations or duties imposed by the Canada Pension Benefits Standards Act, the Ontario Pension Benefits Act, the U.S. Employee Retirement Income Security Act of 1974 (ERISA), as amended, or any similar provisions of any other federal, provincial, territorial, state, local or foreign statutory or common pension law; or

- (6) *Compensation & Labour Liability*
- (a) for any violation of responsibilities, obligations or duties imposed by the Canada Labour Code, the Employment Standards Act, 2000, the Labour Adjustments Benefits Act, the U.S. Fair Labor Standards Act (except the Equal Pay Act), the U.S. National Labor Relations Act, the U.S. Worker Adjustment and Retraining Notification (WARN) Act, the U.S. Consolidated Omnibus Budget Reconciliation Act (COBRA), the U.S. Occupational Safety and Health Act (OSHA), the Ontario Occupational Health and Safety Act, the Employment Equity Act, or any federal, provincial, territorial, state, local or foreign law, amendment to any law, or any rule or regulation, that imposes or expands responsibilities, obligations or duties relating to compensation, retirement, benefits, deductions, withholdings, breaks or the workplace; or
 - (b) alleging, arising out of, based upon or attributable to any of the circumstances described in any of the following:
 - (i) the refusal, failure or inability of any **Insured** to pay wages or overtime pay (or amounts representing such wages or overtime pay) for services rendered or time spent in connection with work related activities (as opposed to tort-based back pay or front pay damages for torts other than conversion);
 - (ii) improper deductions from pay taken by any **Insured** from any **Employee** or purported **Employee**; or
 - (iii) failure to provide or enforce legally required meal or rest break periods or provide legally required vacations or public holidays or vacation pay or public holiday pay;
- provided, however, the foregoing exclusions 6(a) and 6(b) shall not apply to the extent that a **Claim** is for **Retaliation**;
- (7) *Benefits*
- for any obligation pursuant to any worker's compensation, disability benefits, unemployment compensation, unemployment insurance, retirement benefits, social security benefits or similar law; provided, however, this exclusion shall not apply to the extent that a **Claim** is for **Retaliation**;
- (8) *Contract*
- alleging, arising out of, based upon or attributable to any actual or alleged contractual liability of an **Insured** under any express contract or agreement; provided, however, that this exclusion shall not apply to:
- (i) liability which would have attached in the absence of such express contract or agreement; or
 - (ii) **Loss** constituting **Defence Costs**; or
- (9) *Securities Claim*
- alleging, arising out of, based upon or attributable to any **Claim** brought by any holder of securities representing the debt or equity of the **Organization** or an **Outside Entity**, in their capacity as such, whether directly, derivatively on behalf of the **Organization** or **Outside Entity**.



4. RETENTION

No Retention is applicable to the following: (i) **Crisis Loss**; or (ii) the first \$25,000 in **Defence Costs** incurred as **E-Discovery Consultant Services**.

Except as provided above and in the *First Dollar E-Discovery Consultant Services Extension*, for each **Claim** the **Insurer** shall only be liable for the amount of covered **Loss** arising from such **Claim** which is in excess of the applicable Retention set forth on the Declarations or in any endorsement to this policy. Amounts within the Retention shall remain uninsured.

A single Retention shall apply to **Loss** arising from all **Related Claims**. In the event a **Claim** triggers more than one Retention, then, as to such **Claim**, only the highest of such Retentions shall be deemed the Retention applicable to **Loss** arising from such **Claim** unless this policy expressly provides otherwise.

In the event the **Organization** is unable to pay an applicable Retention amount due to **Financial Insolvency**, then the **Insurer** shall commence advancing **Loss** within the Retention; provided, however, that: (a) in no event shall any such advancement by the **Insurer** relieve any **Organization** of any duty it may have to provide advancement, payment or indemnification to any **Individual Insured**; and (b) the **Insurer** shall be entitled to recover the amount of **Loss** advanced within the Retention from the **Organization** pursuant to the subrogation provisions of this policy.

5. LIMIT OF LIABILITY

The **Limit of Liability** stated in the Declarations is the aggregate limit of the **Insurer's** liability for all **Loss** (including **Defence Costs**) under this policy. The **CrisisFund®** is part of, and not in addition to, the **Limit of Liability**.

The **Limit of Liability** for the **Discovery Period** shall be part of, and not in addition to, the **Limit of Liability** for the **Policy Period**. Further, all **Related Claims** that are considered made or received during the **Policy Period** or **Discovery Period** pursuant to subparagraph (b), (c) or (d) of Clause 6. *Notice And Reporting*, shall also be subject to the **Limit of Liability** for the **Policy Period**.

Defence Costs are not payable by the **Insurer** in addition to the **Limit of Liability**. **Defence Costs** are part of **Loss** and as such are subject to the **Limit of Liability** for **Loss**.

6. NOTICE AND REPORTING

Notice hereunder shall be given in writing to the **Insurer** at the **Claims Address** indicated in the Declarations. If mailed or transmitted by electronic mail, the date of such mailing or transmission shall constitute the date that such notice was given and proof of mailing or transmission shall be sufficient proof of notice.

- (a) *Reporting a Claim or Crisis* An **Organization** or an **Insured** shall, as a condition precedent to the obligations of the **Insurer** under this policy, notify the **Insurer** in writing of a **Claim** made against an **Insured** or a **Crisis** as soon as practicable after (i) the **Named Entity's** Human Resources Manager, Risk Manager or General Counsel (or equivalent position) first becomes aware of the **Claim**; or (ii) the **Crisis** commences. In all events, notification must be provided no later than sixty (60) days after the end of the **Policy Period** or the **Discovery Period** (if applicable).



(b) *Relation Back to the First Reported Claim*

Solely for the purpose of establishing whether any subsequent **Related Claim** was first made during the **Policy Period** or **Discovery Period** (if applicable), if during any such period a **Claim** was first made and reported in accordance with Clause 6(a) above, then any **Related Claim** that is subsequently made against an **Insured** and that is reported in accordance with Clause 6(a)(i) above shall be deemed to have been first made at the time that such previously reported **Claim** was first made.

With respect to any subsequent **Related Claim**, this policy shall not cover **Loss** incurred before such subsequent **Related Claim** is actually made against an **Insured**. **Claims** actually first made or deemed first made prior to the inception date of this policy are not covered under this policy.

(c) *Claims Savings Clause*

1. Notwithstanding subparagraph (b) of this Clause, with respect to any **Claim** which (i) first becomes a **Litigated Matter** during the **Policy Period** or **Discovery Period** (if applicable); and (ii) is a **Related Claim** with respect to an **Administrative Claim** which was first made against an **Insured** prior to the **Policy Period**, the **Insurer** shall not deny coverage for such **Claim** based upon late notice of such **Claim** or based upon such **Claim** first being made prior to the **Policy Period**, provided that:

- (a) the **Claim** was first made against the **Insured** at a time during which the **Named Entity** was insured under a **Prior AIG Policy**;
- (b) upon the **Claim** first becoming a **Litigated Matter**, the **Claim** was reported in accordance with Clause 6(a) above; and
- (c) no **Insured** has made a monetary settlement offer to a claimant or responded to a monetary demand from or on behalf of a claimant with respect to such **Claim**.

2. Coverage under this policy for any **Claim** afforded coverage pursuant to this Clause 6(c) shall be the lesser of:

- (a) the coverage which would have been provided under this policy for such **Claim** had the **Claim** been made during the **Policy Period** and reported to the **Insurer** as required by this policy; or
- (b) the coverage, if any, which would have been provided under the **Prior AIG Policy** for such **Claim** if the **Insured** had properly provided notice of such **Claim** in accordance with the provisions of the **Prior AIG Policy**,

taking into account all provisions of each policy, including, without limitation, applicable limits of liability (as reduced by payments made under such policy), retentions, exclusions and other restrictions contained in each policy;



Notwithstanding the foregoing, nothing in this Clause 6(c) shall be construed to increase the **Limit of Liability** of this policy or to provide coverage under the **Prior AIG Policy**, nor shall this Clause 6(c) ever result in providing coverage under this policy for **Loss** for which coverage is in fact provided (or would be provided but for the exhaustion of the limit of liability) under the **Prior AIG Policy**.

3. This Clause 6(c) shall not apply to any **Claim** which:

- (a) prior to the **Policy Period** was a **Litigated Matter**; or
- (b) is a **Related Claim** with respect to a **Claim** which, prior to the **Policy Period** was a **Litigated Matter**.

(d) *Relation Back to Reported Circumstances Which May Give Rise to a Claim*

If during the **Policy Period** or **Discovery Period** (if applicable) an **Organization** or an **Individual Insured** becomes aware of and notifies the **Insurer** in writing of circumstances that may give rise to a **Claim** being made against an **Insured** and provides details as required below, then any **Claim** that is subsequently made against an **Insured** that arises from such circumstances and that is reported in accordance with Clause 6(a)(i) above shall be deemed to have been first made at the time of the notification of circumstances for the purpose of establishing whether such subsequent **Claim** was first made during the **Policy Period** or during the **Discovery Period** (if applicable). Coverage for **Loss** arising from any such subsequent **Claim** shall only apply to **Loss** incurred after that subsequent **Claim** is actually made against an **Insured**. In order to be effective, notification of circumstances must specify the facts, circumstances, nature of the alleged **Wrongful Act** anticipated and reasons for anticipating such **Claim**, with full particulars as to dates, persons and entities involved.

7. DISCOVERY

Bilateral Discovery Options

Except as indicated below, if the **Named Entity** shall cancel or the **Named Entity** or the **Insurer** shall refuse to renew or replace this policy, the **Insureds** shall have the right to a period of one to six years following the effective date of such cancellation or nonrenewal (the "**Discovery Period**"), upon payment of the respective "**Additional Premium Amount**" described below, in which to give to the **Insurer** written notice pursuant to Clause 6(a) and Clause 6(d) of the policy of: (a) **Claims** first made against an **Insured**; and (b) circumstances of which an **Organization** or an **Insured** shall become aware, in any such case, during said **Discovery Period** and solely with respect to a **Wrongful Act** that occurs prior to the end of the **Policy Period**.

Discovery Premium

The **Additional Premium Amount** for: (a) one year shall be no more than 150% of the **Full Annual Premium**; (b) two to six years shall be an amount to be determined by the **Insurer**. As used herein, "**Full Annual Premium**" means the premium level in effect immediately prior to the end of the **Policy Period**.

Transaction Option

In the event of a **Transaction**, the **Named Entity** shall have the right to request an offer from the **Insurer** of a **Discovery Period** (with respect to **Wrongful Acts** occurring prior to the effective time of the **Transaction**). The **Insurer** shall offer such **Discovery Period** pursuant to such terms, conditions, exclusions and additional premium as the **Insurer** may reasonably decide. In the event of a **Transaction**, the right to a **Discovery Period** shall not otherwise exist except as indicated in this paragraph.

The **Discovery Period** is not cancellable and the additional premium charged is non-refundable in whole or in part. This *Discovery Clause* shall not apply to any cancellation resulting from non-payment of premium. The rights contained in this *Discovery Clause* shall terminate unless written notice by any **Insured** of election of a **Discovery Period**, together with the additional premium due, is received by the **Insurer** no later than thirty (30) days subsequent to the effective date of the cancellation, nonrenewal or **Transaction**.

8. DEFENCE AND SETTLEMENT

A. For Claims

(1) *No Duty to Defend*

The **Insureds** shall defend and contest any **Claim** made against them. The **Insurer** does not assume any duty to defend.

(2) *Right to Tender Defence*

Notwithstanding the foregoing, the **Insureds** shall have the right to tender the defence of any **Claim** to the **Insurer**, which right shall be exercised in writing by the **Named Entity** on behalf of all **Insureds**. This right shall terminate if not exercised within thirty (30) days of the date the **Claim** is first made against an **Insured**. Further, from the date the **Claim** is first made against the **Insureds** to the date when the **Insurer** accepts the tender of the defence of such **Claim**, the **Insureds** shall take no action, or fail to take any required action, that prejudices the rights of the **Insureds** or the **Insurer** with respect to such **Claim**. Provided that the **Insureds** have complied with the foregoing, the **Insurer** shall be obligated to assume the defence of the **Claim**, even if such **Claim** is groundless, false or fraudulent. The assumption of the defence of the **Claim** shall be effective upon written confirmation thereof sent by the **Insurer** to the **Named Entity**. Once the defence has been so tendered, the **Insured** shall have the right to effectively associate with the **Insurer** in the defence and the negotiation of any settlement of any **Claim**. However, the **Insurer** shall not be obligated to defend such **Claim** after the **Limit of Liability** has been exhausted, or after an **Insured's** rejection (or failure or refusal to accept within the time prescribed in the "Settlement Opportunity" paragraph of this Clause 8) of a **Settlement Opportunity**.



(3) *Advancement*

When the **Insurer** has not assumed the defence of a **Claim** pursuant to this Clause 8, it shall advance, excess of any applicable Retention, covered **Defence Costs** on a current basis, but no later than ninety (90) days after the **Insurer** has received itemized bills for those **Defence Costs**. Such advance payments by the **Insurer** shall be repaid to the **Insurer** by each and every **Individual Insured** or **Organization**, severally according to their respective interests, in the event and to the extent that any such **Individual Insured** or **Organization** shall not be entitled under this policy to payment of such **Loss**.

(4) *Claims Participation and Cooperation*

When the **Insurer** has not assumed the defence of a **Claim** pursuant to this Clause 8, the **Insurer** shall have the right, but not the obligation, to fully and effectively associate with each and every **Insured** in the defence and prosecution of any **Claim** that involves, or appears reasonably likely to involve the **Insurer**, including, but not limited to, negotiating a settlement. Each and every **Insured** shall give the **Insurer** full cooperation and such information as it may reasonably require.

The failure of any **Individual Insured** to give the **Insurer** cooperation and information as required in the preceding paragraph shall not impair the rights of any other **Individual Insured** under this policy.

The **Insureds** shall not admit or assume any liability, enter into any settlement agreement, stipulate to any judgment or incur any **Defence Costs**, without the prior written consent of the **Insurer**. Such consent shall not be unreasonably withheld.

(5) *Full Settlement Within Retention/ Consent Waived*

If all **Insured** defendants are able to dispose of all **Claims** which are subject to one Retention (inclusive of **Defence Costs**) for an amount not exceeding the Retention, then the **Insurer's** consent shall not be required for such disposition.

(6) *Settlement Opportunity*

In the event the **Insureds** do not consent to the first **Settlement Opportunity** within thirty (30) days of the date the **Insureds** are first made aware of the **Settlement Opportunity** (or in the case of a **Settlement Opportunity** which arises from a settlement offer by the claimant, then within the time permitted by the claimant to accept such settlement offer, but in all events no later than thirty (30) days after the settlement offer was made), then the **Insurer's** liability for all **Loss** on account of such **Claim** shall not exceed: (a) the amount for which the **Insurer** could have settled such **Claim** plus **Defence Costs** incurred as of the date such settlement was proposed in writing by the **Insurer** ("**Settlement Opportunity Amount**"), plus (b) 70% of covered **Loss** in excess of such **Settlement Opportunity Amount**, it being a condition of this insurance that the remaining 30% of such **Loss** excess of the **Settlement Opportunity Amount** shall be carried by the **Organization** and the **Insureds** at their own risk and be uninsured.



Notwithstanding the foregoing, this paragraph shall not apply unless the **Settlement Opportunity Amount** exceeds the remaining applicable Retention amount.

This clause shall only apply to a **Claim** brought in the United States, its territories or possessions.

(7) *Applicability*

This *Defence and Settlement Clause* is not applicable to **Crisis Loss**. Nevertheless the **Insurer** does not, under this policy, assume any duty to defend.

B. Pre-Authorized Defence Counsel For Designated Employment Practices Claims

The list of approved panel counsel law firms ("**Panel Counsel**") is accessible through the online directory at <http://www.aig.com/us/panelcounseldirectory> under the "Public and Private Companies (Employment Practices Liability)" link. The list provides a choice of law firms from which a selection of legal counsel shall be made by the **Insureds** (or, in the event the **Insurer** has assumed the defence pursuant to Clause 8.A.(2) of this policy, the **Insurer**) to conduct the defence of any **Designated Employment Practices Claim** made against the **Insureds**.

With the express prior written consent of the **Insurer**, an **Insured** may select a **Panel Counsel** different from that selected by another **Insured** defendant if such selection is required due to an actual conflict of interest or is otherwise reasonably justifiable. The list of **Panel Counsel** may be amended from time to time by the **Insurer**. However, if a firm is removed from the list during the **Policy Period**, the **Insureds** shall be entitled to select such firm to conduct the defence of any **Designated Employment Practices Claim** made against such **Insureds** during the **Policy Period**.

The **Insureds** (or, in the event the **Insurer** has assumed the defence pursuant to Clause 8.A of this policy, the **Insurer**) shall select a **Panel Counsel** to defend the **Designated Employment Practices Claim** made against the **Insureds** in the jurisdiction in which the **Designated Employment Practices Claim** is brought. In the event the **Claim** is brought in a jurisdiction not included on the list, **Panel Counsel** shall be selected in the listed jurisdiction which is the nearest geographic jurisdiction to either where the **Designated Employment Practices Claim** is brought or where the corporate headquarters of the **Named Entity** is located. In such instance the **Insureds** also may, with the express prior written consent of the **Insurer**, which consent shall not be unreasonably withheld, select a non-**Panel Counsel** in the jurisdiction in which the **Designated Employment Practices Claim** is brought to function as "local counsel" on the **Claim** to assist the **Panel Counsel** which will function as "lead counsel" in conducting the defence of the **Designated Employment Practices Claim**.

This Section B shall only apply to a **Claim** brought in the United States, its territories or possessions.

C. Pre-Approved E-Consultant Firms

The list of pre-approved **E-Consultant Firms** is accessible through the online directory at <http://www.aig.com/us/panelcounseldirectory> under the "e-Consultant Panel Members" link. Any **E-Consultant Firm** may be hired by an **Insured** to perform **E-Discovery Consultant Services** without further approval by the **Insurer**. This Section C shall only apply to a claim brought in the United States, its territories or possessions.

9. CHANGES TO INSUREDS

A. *Transactions*

In the event of a **Transaction** during the **Policy Period**, this policy shall continue in full force and effect as to **Wrongful Acts** occurring prior to the effective time of the **Transaction**, but there shall be no coverage afforded by any provision of this policy for any **Wrongful Act** alleged to have occurred after the effective time of the **Transaction**. This policy may not be cancelled after the effective time of the **Transaction** and no portion of the premium paid for this policy shall be refundable. The **Named Entity** shall also have the right to an offer by the **Insurer** of a **Discovery Period** described in the *Transaction Option* paragraph of Clause 7. *Discovery*.

B. *Subsidiary Additions*

In addition to the definition of "**Subsidiary**" set forth in Clause 12. *Definitions*, **Subsidiary** also means any for-profit entity: (1) of which the **Named Entity** first had **Management Control** during the **Policy Period**, whether directly or indirectly through one or more other **Subsidiaries**; and (2) whose:

- (a) total number of **Employees** is less than the lesser of: (i) 20% of the total **Employees** of each and every **Organization** as of the inception date of this policy; or (ii) five hundred (500); or
- (b) total number of **Employee** does not satisfy the criteria set forth in subparagraph (a), above, but such entity shall be a "**Subsidiary**" only: (i) for a period of sixty (60) days from the date the **Named Entity** first had **Management Control** of such entity; or (ii) until the end of the **Policy Period**, whichever expires or ends first (the "**Auto-Subsidiary Period**");

provided that, with respect only to entities described in subparagraph (b) above, the **Named Entity** or any other **Insured** shall report such **Subsidiary** to the **Insurer**, in writing, prior to the end of the **Policy Period**.

The **Insurer** shall extend coverage for any **Subsidiary** described in subparagraph (b) above, and any **Individual Insured** thereof, beyond its respective **Auto-Subsidiary Period** if during such **Auto-Subsidiary Period**, the **Named Entity** shall have provided the **Insurer** with full particulars of the new **Subsidiary** and agreed to any additional premium and amendment of the provisions of this policy required by the **Insurer** relating to such **Subsidiary**. Further, coverage as shall be afforded to any **Subsidiary** and any **Individual Insured** thereof is conditioned upon the **Named Entity** paying when due any additional premium required by the **Insurer** relating to such **Subsidiary**.

C. *Former Subsidiaries*

In the event the **Named Entity** loses **Management Control** of a **Subsidiary** during or prior to the **Policy Period**, coverage with respect to such **Subsidiary** and its **Individual Insureds** shall continue until termination of this policy but only with respect to **Claims** for **Wrongful Acts** that occurred or are alleged to have occurred during the time that the **Named Entity** had **Management Control** of such entity either directly or indirectly through one or more of its **Subsidiaries**.

D. *Scope Of Subsidiary Coverage*

Coverage as is afforded under this policy with respect to a **Claim** made against any **Subsidiary** and/or any **Individual Insured** thereof shall only apply for **Wrongful Acts** committed or allegedly committed during the time that such **Subsidiary** and such **Individual Insured** meet the respective definitions of **Subsidiary** and **Individual Insured** set forth in this policy.



10. APPLICATION AND UNDERWRITING

A. *Application And Reliance*

The **Insurer** has relied upon the accuracy and completeness of the statements, warranties and representations contained in the **Application**. All such statements, warranties and representations are the basis for this policy and are to be considered as incorporated into this policy.

B. *Severability Of The Application*

The **Application** shall be construed as a separate application for coverage by each **Individual Insured**. With respect to the **Application**, no knowledge possessed by any **Organization** or any **Individual Insured** shall be imputed to any other **Individual Insured**.

If the statements, warranties and representations in the **Application** were not accurate and complete and materially affected either the acceptance of the risk or the hazard assumed by the **Insurer** under the policy, then the **Insurer** shall have the right to void coverage under this policy, *ab initio*, with respect to:

- (1) **Loss** of any **Individual Insured** who knew, as of the inception date of the **Policy Period**, the facts that were not accurately and completely disclosed; and
- (2) **Loss** of an **Organization**, if any **Individual Insured** who is or was a chief executive officer, general counsel, director of human resources or risk manager (or equivalent position) of the **Named Entity** knew, as of the inception date of the **Policy Period**, the facts that were not accurately and completely disclosed.

The foregoing applies even if the **Individual Insured** did not know that such incomplete or inaccurate disclosure had been provided to the **Insurer** or included within the **Application**.

11. GENERAL TERMS AND CONDITIONS

A. *Bankruptcy And Insolvency*

Bankruptcy or insolvency of any **Organization** or any **Individual Insured** shall not relieve the **Insurer** of any of its obligations under this policy.

In such event, the **Insurer** and each **Organization** and **Individual Insured** agree to cooperate in any efforts by the **Insurer** or any **Organization** or **Individual Insured** to obtain relief for the benefit of the **Individual Insureds** from any stay or injunction applicable to the distribution of the policy proceeds.

In the event that any **Insured** seeks any order, ruling or other determination from any court or other authority directing that amounts may be paid under this policy notwithstanding the **Financial Insolvency** of any **Organization**, then all reasonable fees, costs and expenses incurred by an **Insured** with respect to such request shall be considered **Defence Costs** within the meaning of this policy.

B. *Payments and Obligations of Organizations and Others*

1. *OTHER INSURANCE AND INDEMNIFICATION*

Unless expressly written to be excess over other applicable insurance, it is intended that the insurance provided by this policy shall be primary.



In the event a **Claim** is made against an **Outside Entity Executive**, or a **Claim** is made against an **Insured** for the **Insured's** liability with respect to a leased **Employee** or independent contractor **Employee** as described in the definition of "**Employee**", coverage as is afforded by this policy shall be specifically excess of any: (a) indemnification provided by such **Outside Entity** or leasing company; and (b) any other insurance provided to such **Outside Entity**, leasing company or independent contractor.

2. SUBROGATION

To the extent of any payment under this policy, the **Insurer** shall be subrogated to all of the **Organizations'** and **Insureds'** rights of recovery. Each **Organization** and each **Individual Insured** shall execute all papers reasonably required and provide reasonable assistance and cooperation in securing or enabling the **Insurer** to exercise subrogation rights or any other rights, directly or in the name of the **Organization** or any **Individual Insured**.

In the event that the **Insurer** shall for any reason pay **Loss** on behalf of an **Individual Insured**, the **Insurer's** subrogation rights shall include, but not be limited to, the assertion of indemnification or contribution rights with respect to any such payments it makes or advances. Additionally, upon the **Insurer** making any payment of **Loss** within the Retention on behalf of any **Insured**, the **Insurer** shall have a direct contractual right under this policy to recover from the **Organization**, or in the event of the bankruptcy of the **Organization**, from the debtor-in-possession (or equivalent status outside the United States) such **Loss** which was paid within the Retention. Such direct contractual right of recovery against the **Organization** shall be in addition to and independent of the **Insurer's** subrogation right pursuant to this Clause 11.B.2 and any other rights the **Insurer** may have under applicable law.

In no event, however, shall the **Insurer** exercise its rights of subrogation against an **Insured** under this policy unless the Conduct Exclusion applies with regard to such **Insured**; provided, however, this sentence shall not apply to subrogation against the **Organization** as described in the second paragraph of this Clause 11.B.2.

3. RECOVERY OF LIMIT OF LIABILITY

In the event the **Insurer** recovers amounts it paid under this policy, the **Insurer** will reinstate the **Limit of Liability** of this policy to the extent of such recovery, less its costs incurred in administering and obtaining such recovery. The **Insurer** assumes no duty to seek a recovery of any amounts paid under this policy. The **Insurer**, in its sole and absolute discretion, shall determine the amounts to be credited, if any, toward a reinstatement of the **Limit of Liability**.

C. Cancellation

The **Named Entity** may cancel this policy at any time by mailing prior written notice to the **Insurer** or by surrender of this policy to the **Insurer** or its authorized agent. This policy may only be cancelled by or on behalf of the **Insurer** in the event of non-payment of premium by the **Named Entity**. In the event of non-payment of premium by the **Named Entity**, the **Insurer** may cancel this policy by delivering to the **Named Entity** or by mailing to the **Named Entity**, by registered, certified, or other first class mail, at the **Named Entity Address**, written notice stating when, not less than 15 days thereafter, the cancellation shall be effective. The mailing of such notice as aforesaid shall be sufficient proof of notice. The **Policy Period** terminates at the date and hour specified in such notice, or at the date and time of surrender of the policy. The **Insurer** shall have the right to the premium amount for the portion of the **Policy Period** during which the policy was in effect. If the **Named Entity** shall cancel this policy, the **Insurer** shall retain the *pro rata* proportion of the premium herein.



D. Notice And Authority

The **Named Entity** shall act on behalf of its **Subsidiaries** and each and every **Insured** with respect to the giving of notice of a **Claim**, **Crisis** or circumstance, the giving and receiving of notice of cancellation, the payment of premiums and the receiving of any return premiums that may become due under this policy, and the receipt and acceptance of any endorsements issued to form a part of this policy and the exercising or declining of any right to a **Discovery Period**; provided, however, that the foregoing shall not limit the ability of an **Organization** or **Insured** to provide notice of a **Claim** or circumstance in accordance with Clause 6. *Notice And Reporting*, or to elect discovery and pay the **Additional Premium Amount** (as defined in Clause 7. *Discovery*).

E. Currency

All premiums, limits, retentions, **Loss** and other amounts under this policy are expressed and payable in the currency of Canada. If judgment is rendered, settlement is denominated or other elements of **Loss** are stated or incurred in a currency other than Canadian dollars, payment of covered **Loss** due under this policy (subject to the terms, conditions and limitations of this policy) will be made either in such other currency (at the option of the **Insurer** and if agreeable to the **Named Entity**) or, in Canadian dollars, at the rate of exchange published in The Globe and Mail on the date the **Insurer's** obligation to pay such **Loss** is established (or if not published on such date the next publication date of The Globe and Mail).

F. Assignment

This policy and any and all rights hereunder are not assignable without the written consent of the **Insurer**.

G. Dispute

1. ALTERNATIVE DISPUTE RESOLUTION

ADR Options

All disputes or differences which may arise under or in connection with this policy, whether arising before or after termination of this policy, including any determination of the amount of **Loss**, shall be submitted to an alternative dispute resolution (ADR) process as provided in this clause. The **Named Entity** may elect the type of ADR process discussed below; provided, however, that absent a timely election, the **Insurer** may elect the type of ADR. In that case, the **Named Entity** shall have the right to reject the **Insurer's** choice of the type of ADR process at any time prior to its commencement, after which, the **Insured's** choice of ADR shall control.

Mediation

In the event of mediation, either party shall have the right to commence a judicial proceeding; provided, however, that no such judicial proceeding shall be commenced until the mediation shall have been terminated and at least ninety (90) days shall have elapsed from the date of the termination of the mediation.

Arbitration

In the event of arbitration, the decision of the arbitrator(s) shall be final, binding and provided to both parties, and the arbitration award shall not include legal fees or other costs.



ADR Process

Selection of Arbitrator(s) or Mediator: The **Insurer** and the **Named Entity** shall mutually consent to: (i) in the case of arbitration, an odd number of arbitrators which shall constitute the arbitration panel, or (ii) in the case of mediation, a single mediator. The arbitrator, arbitration panel members or mediator must be disinterested and have knowledge of the legal, corporate management, or insurance issues relevant to the matters in dispute. In the absence of agreement, the **Insurer** and the **Named Entity** each shall select one arbitrator, the two arbitrators shall select a third arbitrator, and the panel shall then determine applicable procedural rules.

ADR Rules: In considering the construction or interpretation of the provisions of this policy, the mediator or arbitrator(s) must give due consideration to the general principles of the law of the **Province or Territory of Formation** of the **Named Entity**. Each party shall share equally the expenses of the process elected. At the election of the **Named Entity**, either choice of ADR process shall be commenced in Toronto, Ontario or in the province or territory reflected in the **Named Entity Address**, and in accordance with the Ontario Arbitration Act. The **Named Entity** shall act on behalf of each and every **Insured** under this *Alternative Dispute Resolution Clause*. In all other respects, the **Insurer** and the **Named Entity** shall mutually agree to the procedural rules for the mediation or arbitration. In the absence of such an agreement, after reasonable diligence, the arbitrator(s) or mediator shall specify commercially reasonable rules.

2. ACTION AGAINST INSURER

Except as provided in Clause 11.G.1. *Alternative Dispute Resolution*, no action shall lie against the **Insurer** unless, as a condition precedent thereto, there shall have been full compliance with all of the terms of this policy, or until the amount of the **Insured's** obligation to pay shall have been finally determined either by judgment against such **Insured** after actual trial or by written agreement of the **Insured**, the claimant and the **Insurer**.

Any **Insured** or the legal representative thereof who has secured such judgment or written agreement shall thereafter be entitled to recover under this policy to the extent of the insurance afforded by this policy. No person or organization shall have any right under this policy to join the **Insurer** as a party to any action against any **Insured** or **Organization** to determine the **Insured's** liability, nor shall the **Insurer** be impleaded by any **Individual Insured**, his or her spouse or legally recognized domestic partner, any **Organization** or any legal representative of the foregoing.

H. Spousal, Domestic Partner And Legal Representative Extension

If a **Claim** against an **Individual Insured** includes a **Claim** against: (1) the lawful spouse or legally recognized domestic partner of such **Individual Insured**; or (2) a property interest of such spouse or domestic partner, and such **Claim** arises from any actual or alleged **Wrongful Act** of such **Individual Insured**, this policy shall pay covered **Loss** arising from the **Claim** made against such spouse or domestic partner or the property of such spouse or domestic partner to the extent that such **Loss** does not arise from a **Claim** for any actual or alleged act, error or omission of such spouse or domestic partner. This policy shall pay covered **Loss** arising



from a **Claim** made against the estates, heirs, or legal representatives of any deceased **Individual Insured**, and the legal representatives of any **Individual Insured** in the event of incompetence, insolvency or bankruptcy, who was an **Individual Insured** at the time the **Wrongful Acts** upon which such **Claim** is based were alleged to have been committed.

I. Conformance To Law

In the event that there is an inconsistency between: (1) any period of limitation in this policy relating to the giving of notice of cancellation or discovery/extended reporting election, and (2) the minimum or maximum period required by applicable law, where such law allows, the **Insurer** will resolve the inconsistency by applying the notice period that is more favourable to the **Insureds**. Otherwise, the notice period is hereby amended to the extent necessary to conform to applicable law.

Coverage under this policy shall not be provided to the extent prohibited by any law. Where this policy is legally required to be interpreted in accordance with the laws of the Province of Quebec:

- (a) Les parties ont expressément convenu que cette convention ainsi que tous documents y afférents soient rédigés en langue anglaise seulement.
The parties have expressly agreed that this agreement and all related documents be drafted in the English language only.
- (b) The policy provisions shall be deemed to be amended to comply with the applicable mandatory provisions of the Quebec Civil Code, but only to the extent necessary to comply with such mandatory provisions of the Quebec Civil Code and only to the extent that such mandatory provisions are contrary to the existing terms of this policy.

J. Headings

The descriptions in the headings and the Guide of this policy are solely for convenience, and form no part of the terms and conditions of coverage.

12. DEFINITIONS

Terms with "**Bold**" typeface are used in this policy with the meanings and values ascribed to them below and/or in the Declarations:

Administrative Claim means an administrative or regulatory investigation:

- (1) by an **Enforcement Agency**, or similar federal, provincial, state, local or foreign agency; or
- (2) of a violation of the Uniformed Services Employment and Reemployment Rights Act, when such investigation is conducted by the United States Department of Labor, Veterans Employment and Training Service, Justice Department or Office of Special Counsel;

which, in either case, is commenced by the filing of a complaint or notice of charges or similar document of which notice has been given to an **Insured**.
The term "**Administrative Claim**" shall not mean or include any **Litigated Matter**.



Application

means:

- (1) the written statements and representations made by an **Insured** and provided to the **Insurer** during the negotiation of this policy, or contained in any application or other materials or information provided to the **Insurer** in connection with the underwriting of this policy; and
- (2) all warranties executed by or on behalf of an **Insured** and provided to the **Insurer** in connection with the underwriting of this policy or the underwriting of any other employment practices (or equivalent) liability policy issued by the **Insurer**, or any of its affiliates, of which this policy is a renewal, replacement or which it succeeds in time.

Claim

means:

- (1) a written demand for monetary, non-monetary or injunctive relief, including, but not limited to, any demand for mediation, arbitration or any other alternative dispute resolution process, or any request to toll or waive the statute of any limitations;
- (2) a civil, criminal, administrative, regulatory or arbitration proceeding for monetary, non-monetary or injunctive relief which is commenced by: (a) service of a complaint or similar pleading; (b) return of an indictment, information or similar document (in the case of a criminal proceeding); or (c) receipt or filing of a notice of charges;
- (3) an administrative or regulatory investigation by an **Enforcement Agency**, or similar federal, provincial, state, local or foreign agency, which is commenced by the filing of a notice of charges, service of a complaint or similar document of which notice has been given to an **Insured**; or
- (4) an administrative or regulatory investigation of violations of the Uniformed Services Employment and Reemployment Rights Act when such investigation is conducted by the United States Department of Labor, Veterans Employment and Training Service, Justice Department or Office of Special Counsel and is commenced by the filing of a notice of charges, service of a complaint or similar document of which notice has been given to an **Insured**.

However, in no event, shall the term "**Claim**" include any labour or grievance proceeding which is subject to a collective bargaining agreement.

Class Action Claim

means any **Claim** brought: (1) by or on behalf of an actual or alleged class (whether or not certified as such); or (2) by an **Enforcement Agency** on behalf of any group of three or more complainants, plaintiffs or potentially aggrieved parties.

Class Action Retention

means the Retention applicable to **Loss** that arises out of a **Class Action Claim**.

Crisis

has the meaning as defined in the CrisisFund® Appendix attached to this policy.

CrisisFund®

means in the case of all **Crisis Loss**, \$25,000 for all **Crisis Loss** in the aggregate for all **Crises** first occurring during the **Policy Period** or any applicable **Discovery Period**.



Crisis Loss	has the meaning as defined in the CrisisFund® Appendix attached to this policy.
Defence Costs	means reasonable and necessary fees, costs and expenses consented to by the Insurer (including the cost of E-Discovery Consultant Services and premiums for any appeal bond, attachment bond or similar bond arising out of a covered judgment, but without any obligation to apply for or furnish any such bond) resulting solely from the investigation, adjustment, defence and/or appeal of a Claim against an Insured . Defence Costs shall not include the compensation of any Individual Insured .
Designated Employment Practices Claim	means a Claim : (1) alleging discrimination or Retaliation ; or (2) that is a Class Action Claim .
Discovery Period	has the meaning as defined in Clause 7. <i>DISCOVERY</i> of this policy.
E-Consultant Firm	means a pre-approved e-discovery consulting firm. A list of pre-approved E-Consultant Firms is accessible through the online directory at http://www.aig.com/us/panelcounseldirectory under the "e-Consultant Panel Members" link.
E-Discovery Consultant Services	means solely the following services performed by an E-Consultant Firm : (1) assisting the Insured with managing and minimizing the internal and external costs associated with the development, collection, storage, organization, cataloging, preservation and/or production of electronically stored information (" E-Discovery "); (2) assisting the Insured in developing or formulating an E-Discovery strategy which shall include interviewing qualified and cost effective E-Discovery vendors; (3) serving as project manager, advisor and/or consultant to the Insured , defence counsel and the Insurer in executing and monitoring the E-Discovery strategy; and (4) such other services provided by the E-Consultant Firm that the Insured , Insurer and E-Consultant Firm agree are reasonable and necessary given the circumstances of the Class Action Claim .
Employee	means any past, present or future employee, whether such employee is in a supervisory, co-worker or subordinate position or otherwise, including any full-time, part-time, seasonal and temporary employee, in his or her capacity as such. An individual who is leased to the Organization or is contracted to perform work for the Organization , or who is an independent or dependent contractor for the Organization , shall also be an Employee .
Employee Information Breach Crisis	has the meaning as defined in the CrisisFund® Appendix attached to this policy.
Employment Practices Crisis	has the meaning as defined in the CrisisFund® Appendix attached to this policy.

**Employment
Practices Violation**

means any actual or alleged:

- (1) wrongful dismissal, discharge or termination (either actual or constructive) of employment, including breach of an implied contract;
- (2) harassment (including workplace bullying, sexual harassment whether "quid pro quo", hostile work environment or otherwise, including "same-sex" sexual harassment);
- (3) discrimination (including, but not limited to, discrimination based upon age, gender, gender identity or expression, race, color, national origin, religion, sexual orientation or preference, genetic information, pregnancy, military status or disability);
- (4) **Retaliation**;
- (5) employment-related misrepresentation(s) to an **Employee** of any **Organization**;
- (6) employment-related libel, slander, humiliation, defamation or invasion of privacy;
- (7) false arrest or false imprisonment;
- (8) wrongful failure to employ or promote;
- (9) wrongful deprivation of career opportunity, wrongful demotion or negligent **Employee** evaluation, including the giving of negative or defamatory statements in connection with an employee reference;
- (10) wrongful discipline;
- (11) failure to grant tenure; or
- (12) with respect to any of the foregoing items (1) through (11) of this definition: negligent hiring, retention, training or supervision, infliction of emotional distress or mental anguish, failure to provide or enforce adequate or consistent corporate policies and procedures, or violation of an individual's civil rights;

but only if the **Employment Practices Violation** relates to an **Employee** of or an applicant for employment with an **Organization** or an **Outside Entity**, whether committed directly, indirectly, intentionally or unintentionally.

**Enforcement
Agency**

Means any federal, provincial, territorial, state, local or foreign government body, department or tribunal including the Ontario Ministry of Labour, the Canadian Human Rights Tribunal, the Ontario Human Rights Tribunal, the Equal Employment Opportunity Commission or any similar body or agency whose mandate among others is to investigate, prosecute, mediate arbitrate or conduct hearings into alleged violations of responsibilities, obligations or duties imposed on employers and employees under any employment related statutes, including, without limitation, those statutes listed in Clause 3. EXCLUSIONS, paragraphs (5) and (6) above, or any federal, provincial, territorial, state, local or foreign statutes or laws.



Executive	means any: (1) past, present and future duly elected or appointed director, officer, trustee or governor of a corporation, management committee member of a joint venture or member of the management board of a limited liability company (or equivalent position), in his or her capacity as such; and (2) past, present and future person in a duly elected or appointed position in an entity organized and operated in a Foreign Jurisdiction that is equivalent to an executive position listed in subparagraph (1) above, or a member of the senior-most executive body (including, but not limited to, a supervisory board), in his or her capacity as such.
Financial Insolvency	means: (1) the appointment by any government official, agency, commission, court or other governmental authority of a receiver, conservator, liquidator, trustee, rehabilitator or similar official to take control of, supervise, manage or liquidate an insolvent Organization; (2) the filing of a petition under the bankruptcy laws of Canada; or (3), as to both (1) or (2), any equivalent events outside Canada.
Foreign Jurisdiction	means any jurisdiction, other than Canada or any of its territories or possessions.
Foreign Policy	means the standard employment practices liability policy (including all mandatory endorsements, if any) approved by the Insurer or any of its affiliates to be sold within a Foreign Jurisdiction that provides coverage substantially similar to the coverage afforded under this policy. If more than one such policy exists, then "Foreign Policy" means the standard basic policy form most recently offered for sale for comparable risks by the Insurer or any of its affiliates in that Foreign Jurisdiction.
Individual Insured	means any: (1) Executive of an Organization; (2) Employee of an Organization; provided, however, an individual who is leased to the Organization or is contracted to perform work for the Organization, or who is an independent contractor for the Organization, shall be an Individual Insured only if the Organization provides indemnification to such individual in the same manner as is provided to the Organization's employees; or (3) Outside Entity Executive.
Insured	means any: (1) Individual Insured; or (2) Organization.
Litigated Matter	means any civil, criminal, administrative, regulatory or arbitration proceeding for monetary, non-monetary or injunctive relief which is commenced by: (1) service of a complaint or similar pleading; or (2) return of an indictment, information or similar document (in the case of a criminal proceeding).



Loss

means damages, settlements, judgments (including back pay and front pay, pre/post-judgment interest on a covered judgment), **Defence Costs** and **Crisis Loss**; however, "**Loss**" shall not include: (1) civil or criminal fines or penalties; (2) taxes; (3) any amounts for which an **Insured** is not financially liable or which are without legal recourse to an **Insured**; (4) employment-related benefits, stock options, perquisites, deferred compensation or any other type of compensation other than salary, wages or bonus compensation; (5) any liability or costs incurred by any **Insured** to modify any building or property in order to make said building or property more accessible or accommodating to any disabled person; or any liability or costs incurred in connection with any educational, sensitivity or other corporate program, policy or seminar relating to a **Claim** alleging discrimination or other **Wrongful Act**; and (6) matters which may be deemed uninsurable under the law pursuant to which this policy shall be construed. **Defence Costs** shall be provided for items specifically excluded from **Loss** pursuant to subparagraphs (1) through (6) above of this Definition, subject to the other terms, conditions and exclusions of this policy.

Loss shall specifically include (subject to this policy's other terms, conditions and limitations, including but not limited to the Conduct Exclusion), punitive, exemplary and multiple damages (including the multiple or liquidated damages awards under the Age Discrimination in Employment Act and the Equal Pay Act). Enforceability of this paragraph shall be governed by such applicable law that most favours coverage for such penalties and punitive, exemplary and multiple damages.

Loss shall also include any legal fees awarded to a prevailing plaintiff's counsel pursuant to a covered judgment against an **Insured** or which the **Insurer** has agreed to pay as part of a covered settlement of a **Claim** against an **Insured**.

Management Control

means:

- (1) owning interests representing more than 50% of the voting, appointment or designation power for the selection of a majority of: the Board of Directors of a corporation; the management committee members of a joint venture; or the members of the management board of a limited liability company; or
- (2) having the right, pursuant to written contract or the by-laws, charter, operating agreement or similar documents of an **Organization**, to elect, appoint or designate a majority of: the Board of Directors of a corporation; the management committee of a joint venture; or the management board of a limited liability company.

Organization

means:

- (1) the **Named Entity**;
- (2) each **Subsidiary**; and
- (3) in the event a bankruptcy proceeding shall be instituted by or against any of the foregoing entities, the resulting debtor-in-possession (or equivalent status outside Canada), if any.



Outside Entity	means any: (1) not-for-profit entity; or (2) other entity listed as an " Outside Entity " in an endorsement attached to this policy.
Outside Entity Executive	means any: (1) Executive or Employee of an Organization who is or was acting at the specific request or direction of an Organization as an Executive of an Outside Entity, in his or her capacity as such; or (2) any other person listed as an Outside Entity Executive in an endorsement attached to this policy, in his or her capacity as such. In the event of a disagreement between the Organization and an Outside Entity Executive as to whether such Insured was acting "at the specific request or direction of the Organization," this policy shall abide by the determination of the Organization on this issue and such determination shall be made by written notice to the Insurer within ninety (90) days after the Claim against such Outside Entity Executive is made. In the event no notice of any such determination is given to the Insurer within such period, this policy shall apply as if the Organization determined that such Outside Entity Executive was not acting at the Organization's specific request or direction.
Policy Period	means the period of time from the inception date shown in Item 2 of the Declarations to the earlier of the expiration date shown in such Item 2 or the effective date of cancellation of this policy.
Prior AIG Policy	means a valid and collectible policy providing substantially the same or similar coverage as is provided by this policy, issued to the Name Entity by the Insurer (or any other insurance company affiliate thereof), of which this policy is a continuous renewal.
Related Claim	means a Claim alleging, arising out of, based upon or attributable to any facts or Wrongful Acts that are the same as or related to those that were alleged in another Claim made against an Insured .
Retaliation	means a retaliatory act of an Insured alleged to be in response to the actual or attempted exercise by an Employee of the Organization or an Outside Entity of any right that such Employee has under law, including, without limitation, any of the following activities: (1) the disclosure or threat of disclosure by an Employee of the Organization or an Outside Entity to a superior or to any governmental agency of any act by an Insured which act is alleged to be a violation of any federal, provincial, territorial, state, local or foreign law, common or statutory, or any rule or regulation promulgated thereunder; (2) the exercise of rights under worker's compensation laws, human rights legislation, occupational health and safety laws, the Family and Medical Leave Act, the Americans with Disabilities Act or any other law relating to employee rights; (3) the filing of any claim under the Federal False Claims Act or any other federal, provincial, territorial, state, local or foreign "whistle-blower" law; or (4) strikes of an Employee of the Organization or an Outside Entity .
Settlement Opportunity	means an Insurer recommended settlement that is within the Limit of Liability and that is acceptable to the claimant.



Subsidiary	means: (1) any for-profit entity of which the Named Entity has or had Management Control on or before the inception of the Policy Period either directly or indirectly through one or more of its other Subsidiaries; and (2) any not-for-profit entity sponsored exclusively by an Organization. A for-profit entity ceases to be a Subsidiary when the Named Entity no longer maintains Management Control of such entity either directly or indirectly through one or more of its Subsidiaries. A not-for-profit entity ceases to be a Subsidiary when such entity is no longer sponsored exclusively by an Organization.
Third-Party Violation	means any actual or alleged harassment or unlawful discrimination, as described in subparagraphs (2) and (3) of the definition of Employment Practices Violation, or the violation of the civil rights of an individual relating to such harassment or discrimination, when such acts are alleged to be committed against any individual other than an Individual Insured or applicant for employment with the Organization or with an Outside Entity, including, but not limited to, students, patients, members, customers, vendors and suppliers.
Third Party Retention	means the Retention applicable to Loss that arises out of any Third-Party Violation alleging a Third-Party Violation.
Transaction	means: (1) the Named Entity consolidating with or merging into another entity such that the Named Entity is not the surviving entity, or selling all or substantially all of its assets to any other person or entity or group of persons or entities acting in concert; or (2) any person or entity or group of persons or entities acting in concert acquiring Management Control of the Named Entity.
US Retention	means the Retention applicable to Loss that arises out of any Claim made in the United States, its territories or possessions.
Workplace Violence Crisis	has the meaning as defined in the CrisisFund® Appendix attached to this policy.
Wrongful Act	means any Employment Practices Violation, Third-Party Violation or Wrongful Internet Activity.
Wrongful Internet Activity	means any actual or alleged: (1) Employment Practices Violation alleged by an Employee; or (2) Third Party Violation, when committed by an Employee by means of the internet, including, but not limited to, social networking activities, regardless of whether such internet activity is during or after work hours or on or off the work premises. For purposes of the application of this definition, an individual shall be deemed to be an Employee regardless of whether such individual was acting in his or her capacity as an Employee.



All limits of insurance, premiums and other sums of money as expressed in this policy are in Canadian currency unless otherwise stated in writing

By signing below, the Chief Executive Officer and the Secretary of the Insurer agree on behalf of the Insurer to all the terms of this Policy.

This Policy shall not be valid unless signed at the time of issuance by an authorized representative of the Insurer, either below or on the Declarations page of the policy.

CRISISFUND APPENDIX

I. DEFINITIONS

- (a) "**Crisis**" means an **Employment Practices Crisis**, **Employee Information Breach Crisis** or **Workplace Violence Crisis**, as applicable.
- (b) "**Employment Practices Crisis**" means an **Allegation**, **Discovery** or **Media Report** of a **Wrongful Act** (specifically including, but not limited to, a hostile work environment), which, in the good faith opinion of the **Organization's** General Counsel (or equivalent position), resulted or is reasonably likely to result, in any:
- (1) civil action or compliance audit by the EEOC or any similar state agency or commission;
 - (2) civil or criminal action alleging sexual harassment or conduct by an executive officer;
 - (3) civil class action;
 - (4) civil action involving multiple plaintiffs; or
 - (5) civil action by a person alleging **Retaliation** by an **Insured** in response to such person's actions or threatened actions as a "whistleblower".
- Provided, however, that the term **Crisis** shall not include any:
- (1) revising or rewriting of personnel policies or procedures;
 - (2) sensitivity or awareness training; or
 - (3) accommodations made by the **Organization** pursuant to the Americans With Disabilities Act.
- (c) "**Employee Information Breach Crisis**" means a failure of an **Organization** to prevent unauthorized access, to or use of data containing **Employee Information**, which, in the good faith opinion of the **Organization**, can reasonably be expected to lessen public confidence in the competence of the **Organization**.
- (d) "**Workplace Violence Crisis**" means any intentional act involving the use of deadly force or the threat of deadly force with a deadly weapon which occurs on the **Organization's** premises and involving at least one **Employee**.
- (e) "**Crisis Loss**" means:

(1) **With Respect to an Employment Practices Crisis:**

Any of the following amounts incurred during the pendency of a **Employment Practices Crisis** for which an **Organization** is legally liable:

- (i) the reasonable and necessary fees and expenses incurred by a **Crisis Firm** in the performance of **Crisis Management Services** for an **Organization**;
- (ii) the reasonable and necessary fees and expenses incurred in the printing, advertising or mailing of materials; and
- (iii) travel costs incurred by **Executives**, employees or agents of an **Organization** or of the **Crisis Firm**, arising from or in connection with the **Employment Practices Crisis**.

(2) **With Respect to an Employee Information Breach Crisis:**

The reasonable and necessary fees and expenses incurred by a **Crisis Firm** in the performance of **Crisis Management Services** for an **Organization**

(3) **With Respect to a Workplace Violence Crisis:**

The reasonable fees and expenses, or cost of:

- (i) an independent security consultant for ninety (90) days following the date the **Workplace Violence Crisis** occurs;
- (ii) an independent public relations consultant for ninety (90) days following the date the **Workplace Violence Crisis** occurs; and
- (iii) onsite group counseling session(s) for **Employees** conducted by an independent consultant following a **Workplace Violence Crisis**.

(f) "**Crisis Management Services**" means:

(1) **With Respect to an Employment Practices Crisis:**

Those services performed by an **Crisis Firm** in advising the **Organization** on minimizing potential harm to the **Organization** arising from the **Employment Practices Crisis**; including, but not limited to, maintaining and restoring public and employee confidence in the **Organization**.

(2) **With Respect to an Employee Information Breach Crisis:**

Reasonable and necessary costs and expenses incurred by an **Organization** for a public relations firm, **Crisis Firm** or law firm agreed to by the **Insurer** to advise the **Organization** on minimizing the harm to such **Organization**, including, without limitation, maintaining and restoring public confidence in the **Organization**.

- (g) "**Crisis Firm**" means: means any public relations firm, crisis management firm or law firm on the list of approved firms that is accessible through the online directory at <http://www.aig.com/us/panelcounseldirectory> under the "CrisisFund®" link. In the event the **Organization** chooses to retain the services of an entity not listed, the **Organization** must obtain the written consent of the **Insurer**, which shall not be unreasonably withheld.
- (h) "**Employee Information**" means information regarding past, present or future **Employees** or applicant for employment with the **Organization**, collected or stored by an **Organization** for the purpose of establishing, maintaining or terminating the employment relationship
- (i) "**Allegation**" means any complaint, whether written or verbal, communicated to the **Organization's** human resources department by:
- (1) an individual who believes that he or she was a victim of the alleged **Wrongful Act**;
 - or

(2) such individual's direct or indirect supervisor, if: such supervisor is an **Employee** and that supervisor's conduct is not the subject matter of the alleged **Wrongful Act**.

(j) "**Discovery**" means either:

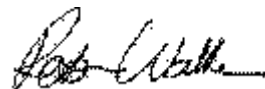
(1) an observation by any **Executive** or any human resources manager; or

(2) an internal investigation conducted by the **Organization**, at the **Organization's** own expense, which concludes that there is a reasonable basis to believe that a **Wrongful Act** has occurred.

(k) "**Media Report**" means any of the following publications or reports received in the geographic area of the **Organization**: (i) a daily newspaper of general circulation; (ii) a weekly, monthly or quarterly newsletter or magazine of general circulation; (iii) a newsletter or trade publication applicable to the **Organization's** industry; or (iv) a radio or television newscast.

II. EXCLUSIONS

The term **Crisis** shall not include any event relating to any **Claim** which has been reported, or any circumstances of which notice has been given, under any policy of which this policy is a renewal or replacement or which it may succeed in time.



AUTHORIZED REPRESENTATIVE

ENDORSEMENT# 1

This endorsement, effective *12:01 am November 17, 2025* forms a part of
policy number *01-590-53-35*
issued to *EQUINOX GOLD CORP*

by *AIG Insurance Company of Canada*

AON AMENDATORY ENDORSEMENT FOR THE EMPLOYMENT EDGE

In consideration of the premium charged, it is hereby understood and agreed that the policy is amended as follows:

1. In Clause 3. EXCLUSIONS, Exclusion (5) *Pension Liability* shall not apply to the extent a **Claim** is for **Retaliation**.
2. Clause 7. DISCOVERY is amended by deleting the last sentence in its entirety and replacing it with the following:

The rights contained in this *Discovery Clause* shall terminate unless written notice by any **Insured** of election of a **Discovery Period**, together with the additional premium due, is received by the **Insurer** no later than forty-five (45) days subsequent to the effective date of the cancellation, nonrenewal or **Transaction**.

3. In Clause 7. DISCOVERY, the section entitled "*Transaction Option*" is amended by inserting the following at the end thereof:

The effective time of any **Discovery Period** purchased pursuant to this *Transaction Option* section shall be agreed upon between the **Insurer** and the **Named Entity**.

4. In Clause 8. DEFENCE AND SETTLEMENT, Subsection 8.A.(2) *Right to Tender Defence* is amended by deleting the third and fourth sentences thereof and replacing them with the following:

Provided that the **Insureds** have complied with the foregoing, the **Insurer** shall assume the duty to defend the **Claim**, even if such **Claim** is groundless, false or fraudulent. The assumption of the duty to defend the **Claim** shall be effective upon written confirmation thereof sent by the **Insurer** to the **Named Entity**.

5. In Clause 8. DEFENCE AND SETTLEMENT, Subsection 8.A.(6) *Settlement Opportunity* is deleted in its entirety and replaced with the following:

(6) Settlement Opportunity

In the event the **Insureds** do not consent to the first **Settlement Opportunity** within thirty (30) days of the date the **Insureds** are first made aware of the **Settlement Opportunity** (or in the case of a **Settlement Opportunity** which arises from a settlement offer by the claimant, then within the time permitted by the claimant to accept such settlement offer, but in all events no later than thirty (30) days after the settlement offer was made), then the **Insurer's** liability for all **Loss** on account of such **Claim** shall not exceed: (a) the amount for which the **Insurer** could have

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settled such **Claim** plus **Defence Costs** incurred as of the date such settlement was proposed in writing by the **Insurer** ("**Settlement Opportunity Amount**"), plus (b) 90% of covered **Loss** in excess of such **Settlement Opportunity Amount**, it being a condition of this insurance that the remaining 10% of such **Loss** excess of the **Settlement Opportunity Amount** shall be carried by the **Organization** and the **Insureds** at their own risk and be uninsured. Notwithstanding the foregoing, this paragraph shall not apply unless the **Settlement Opportunity Amount** exceeds the remaining applicable Retention amount.

This clause shall only apply to a **Claim** brought in the United States, its territories or possessions.

6. Clause 11.C. *Cancellation* is deleted in its entirety and replaced with the following:

C. Cancellation

The **Named Entity** may cancel this policy at any time by mailing prior written notice to the **Insurer** or by surrender of this policy to the **Insurer** or its authorized agent. This policy may only be canceled by or on behalf of the **Insurer** in the event of non-payment of premium by the Named Entity. In the event of non-payment of premium by the **Named Entity**, the **Insurer** may cancel this policy by delivering to the **Named Entity** or by mailing to the **Named Entity**, by registered, certified, or other first class mail, at the **Named Entity Address**, written notice stating when, not less than 30 days thereafter, the cancellation shall be effective. The mailing of such notice as aforesaid shall be sufficient proof of notice. The **Policy Period** terminates at the date and hour specified in such notice, or at the date and time of surrender of the policy. The **Insurer** shall have the right to the premium amount for the portion of the **Policy Period** during which the policy was in effect. If the **Named Entity** shall cancel this policy, the **Insurer** shall retain the *pro rata* proportion of the premium herein.

7. Clause 11.G.1. *ALTERNATIVE DISPUTE RESOLUTION* is amended by deleting the paragraph entitled "*Mediation*" in its entirety and replacing it with the following:

Mediation In the event of mediation, either party shall have the right to commence a judicial proceeding; provided, however, that no such judicial proceeding shall be commenced until the mediation shall have been terminated and at least ninety (90) days shall have elapsed from the date of the termination of the mediation; provided further, however, that the statute of limitations within which to commence such judicial proceeding shall be tolled during said 90 day period.

8. Clause 11.H. *Spousal, Domestic Partner And Legal Representative Extension* is deleted in its entirety and replaced with the following:

H. Spousal, Domestic Partner And Legal Representative Extension

If a **Claim** against an **Individual Insured** includes a **Claim** against: (1) the lawful spouse or legally recognized domestic partner (under applicable law or the provisions of any formal program established by the **Organization**) of such **Individual Insured**; or (2) a property interest of such spouse or domestic partner, and such **Claim** arises from any actual or alleged **Wrongful Act** of such **Individual Insured**, this policy shall pay covered **Loss** arising from the **Claim** made against such spouse or domestic partner or the property of such spouse or domestic partner to the extent that such **Loss** does not arise from a **Claim** for any actual or alleged act, error or omission of such spouse or domestic partner. This policy shall pay covered **Loss** arising from a **Claim** made against the estates, heirs, or legal representatives of any deceased **Individual Insured**, and the legal representatives of any **Individual Insured** in the event of incompetence, insolvency or bankruptcy, who was an **Individual Insured** at the time the **Wrongful Acts** upon which such **Claim** is based were alleged to have been committed.

9. In Clause 12. "**DEFINITIONS**" of the policy, the definition of "**Employee**" is amended to include any volunteers of the **Organization**.
10. In Clause 12. "**DEFINITIONS**" of the policy, the definition of "**Individual Insured**" is amended by deleting subsection (2) thereof in its entirety and replacing it with the following:
- (2) **Employee** of an **Organization**; provided, however, an individual who is leased to the **Organization** or is contracted to perform work for the **Organization**, or who is an independent contractor for or a volunteer of the **Organization**, shall be an **Individual Insured** only if the **Organization** provides indemnification to such individual in the same manner as is provided to the **Organization's** employees; or
11. In Clause 12. "**DEFINITIONS**" of the policy, the definition of "**Litigated Matter**" is deleted in its entirety and replaced with the following:

Litigated Matter	means any proceeding for monetary, non-monetary or injunctive relief which is commenced in federal or state court (or any foreign equivalent) or in an arbitration forum by: (a) service of a complaint or similar pleading; (b) return of an indictment, information or similar document (in the case of a criminal proceeding); or (c) receipt or filing of a demand for arbitration; regardless of whether the subject matter of such proceeding also is or was the subject matter of an administrative or regulatory proceeding or investigation.
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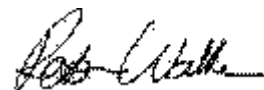
12. In Clause 12. "**DEFINITIONS**" of the policy, the definition of "**Loss**" is amended by deleting subsection (6) thereof in its entirety and replacing it with the following:

(6) matters which may be deemed uninsurable under the law pursuant to which this policy shall be construed; provided, however, it is understood and agreed that a determination as to whether or not matters are "deemed uninsurable" for the purposes of this subsection (6) shall be governed by such applicable law which most favours the **Insured**.

13. In Clause 12. "**DEFINITIONS**" of the policy, the definition of "**Third Party Violation**" is deleted in its entirety and replaced with the following:

Third-Party Violation means any actual or alleged harassment or discrimination, as described in subparagraphs (2) and (3) of the definition of **Employment Practices Violation**, or the violation of the civil rights of an individual relating to such harassment or discrimination, when such acts are alleged to be committed against any individual other than an **Individual Insured** or applicant for employment with the **Organization** or with an **Outside Entity**, including, but not limited to, students, patients, members, customers, vendors and suppliers.

ALL OTHER TERMS, CONDITIONS AND EXCLUSIONS REMAIN UNCHANGED.



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END 001

ENDORSEMENT# 2

This endorsement, effective **at 12:01AM November 17, 2025**
Policy number: **01-590-53-35**
Issued to: **EQUINOX GOLD CORP**

forms a part of

By: *AIG Insurance Company of Canada*

SEPARATE RETENTION FOR CALIFORNIA CLAIMS

In consideration of the premium charged, it is hereby understood and agreed that the policy is amended as follows:

1. Clause 4. **RETENTION** is amended by adding the following paragraph at the end thereof:

Notwithstanding the foregoing, with regard to any **California EPL Claim**, the Insurer shall be liable for the amount of covered **Loss** arising from such **California EPL Claim** which is in excess of a Retention amount of \$500,000. A single Retention amount shall apply to **Loss** arising from all **Related Claims**. In the event a **California EPL Claim** triggers more than one Retention, then, as to such **California EPL Claim**, only the highest of such Retentions shall be deemed the Retention applicable to **Loss** arising from such **California EPL Claim** unless this policy expressly provides otherwise.

2. As used in this endorsement, the term "**California EPL Claim**" means any **Claim** alleging an **Employment Practices Violation, Third-Party Violation or Wrongful Internet Activity**:

(i) that is filed, made, brought, or otherwise commenced in the state of California; or

(ii) that is subject to the law of California, whether such law originates from a statute, regulation, rule, common law, or otherwise.

ALL OTHER TERMS, CONDITIONS AND EXCLUSIONS REMAIN UNCHANGED.



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END 002

ENDORSEMENT# 3

This endorsement, effective **at 12:01AM November 17, 2025**
Policy number: 01-590-53-35
Issued to: **EQUINOX GOLD CORP**

forms a part of

By: *AIG Insurance Company of Canada*

**LOSS DEFINITION AMENDED
(TERMINATION LOSS DIFFERENTIAL)**

In consideration of the premium charged, it is hereby agreed and understood that in Clause 12. DEFINITIONS, the first paragraph of the definition of “**Loss**” is deleted and replaced with the following:

Loss	means damages, settlements, judgments (including back pay and front pay, pre/post-judgment interest on a covered judgment), Defence Costs and Crisis Loss ; however, “ Loss ” shall not include: (1) civil or criminal fines or penalties; (2) taxes; (3) any amounts for which an Insured is not financially liable or which are without legal recourse to an Insured ; (4) employment-related benefits, stock options, perquisites, deferred compensation or any other type of compensation other than a Termination Loss Differential ; (5) any liability or costs incurred by any Insured to modify any building or property in order to make said building or property more accessible or accommodating to any disabled person; or any liability or costs incurred in connection with any educational, sensitivity or other corporate program, policy or seminar relating to a Claim alleging discrimination or other Wrongful Act ; and (6) matters which may be deemed uninsurable under the law pursuant to which this policy shall be construed. Defence Costs shall be provided for items specifically excluded from Loss pursuant to subparagraphs (1) through (6) above of this Definition, subject to the other terms, conditions and exclusions of this policy.
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It is further understood and agreed that, solely for the purposes of the coverage afforded by this endorsement, the following definition shall be added to Clause 12. DEFINITIONS:

Termination Loss Differential	means that portion of Loss which an Insured is legally obligated to pay pursuant to Canadian common law or civil law as a result of wrongful termination of an Employee , but only to the extent of the amount by which the Loss exceeds: (1) the minimum amount payable under applicable statutory law; and (2) the highest monetary offer that the Insured has offered to pay
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END 003

ENDORSEMENT# 3 (Continued)

This endorsement, effective **at 12:01AM November 17, 2025**

forms a part of

Policy number: 01-590-53-35

Issued to: **EQUINOX GOLD CORP**

By: *AIG Insurance Company of Canada*

and/or paid to the **Employee** as pay in lieu of notice or as payment in any way related to the **Insured's** termination obligations to the **Employee** prior to the **Claim** being first made. It is a condition precedent to the coverage provided for **Termination Loss Differential** that the offer to pay or payment made by the **Insured** to the **Employee** described in subclause (2) above has been made:

- (1) reasonably and in good faith;
- (2) in writing; and
- (3) in reliance upon, and consistent with, legal advice that the **Insured** obtained in writing regarding the **Insured's** obligations under contract and/or applicable statutory and common law.

There is no **Termination Loss Differential** if: (i) there was no offer to pay or payment made by the **Insured** to the **Employee** related to the **Insured's** termination obligations to the **Employee** prior to the **Claim** being first made; or (ii) the **Employee** was allegedly or actually constructively dismissed.

ALL OTHER TERMS, CONDITIONS AND EXCLUSIONS REMAIN UNCHANGED.



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END 003

ENDORSEMENT# 4

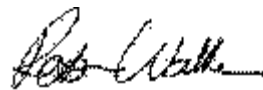
This endorsement, effective *12:01 am November 17, 2025* forms a part of
policy number *01-590-53-35*
issued to *EQUINOX GOLD CORP*

by *AIG Insurance Company of Canada*

US CURRENCY ENDORSEMENT

In consideration of the premium charged, it is hereby understood and agreed that all dollar amounts referenced on the Declarations page and any amendments thereto shall be subject to United States currency.

ALL OTHER TERMS, CONDITIONS AND LIMITATIONS REMAIN UNCHANGED.



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END 004

ENDORSEMENT# 5

This endorsement, effective **at 12:01AM November 17, 2025**
Policy number: 01-590-53-35
Issued to: **EQUINOX GOLD CORP**

forms a part of

By: *AIG Insurance Company of Canada*

SPECIFIC COUNTRY EXCLUSION

In consideration of the premium charged, it is hereby understood and agreed that this policy shall not cover any loss, injury, damage or legal liability arising directly or indirectly from property, operations, trade or any other activity connected to the **Specified Country(ies)**.

For the purposes of this endorsement, "**Specified Country(ies)**" means the following listed countries: Brazil.

ALL OTHER TERMS, CONDITIONS AND EXCLUSIONS REMAIN UNCHANGED.



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END 005

ENDORSEMENT# 6

This endorsement, effective **at 12:01AM November 17, 2025**
Policy number: **01-590-53-35**
Issued to: **EQUINOX GOLD CORP**

forms a part of

By: *AIG Insurance Company of Canada*

**SPECIFIC ENTITY EXCLUSION
(CLAIMS MADE BY OR AGAINST)**

In consideration of the premium charged, it is hereby understood and agreed that the **Insurer** shall not be liable for any **Loss** in connection with any **Claim** made by, on behalf of or against any entity(ies) listed below and/or any **Executive** or **Employee** thereof.

1. Leagold Mining Corporation and any entities that were acquired in the Leagold Mining Corporation acquisition (including any subsidiary or affiliate thereof)

ALL OTHER TERMS, CONDITIONS AND EXCLUSIONS REMAIN UNCHANGED.



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END 006

ENDORSEMENT# 7

This endorsement, effective **at 12:01AM November 17, 2025**
Policy number: **01-590-53-35**
Issued to: **EQUINOX GOLD CORP**

forms a part of

By: *AIG Insurance Company of Canada*

CONFIDENTIAL INFORMATION EXCLUSION

In consideration of the premium charged, it is hereby understood and agreed that the **Insurer** shall not be liable to make any payment for **Loss** in connection with any **Claim** made against any **Insured**:

(a) for any violation of a **Data Privacy Law**; or

(b) alleging, arising out of, based upon or attributable to any:

(i) failure to protect **Confidential Information**;

(ii) wrongful access, obtainment, collection, disclosure, destruction, processing, profiling, retention, sale, sharing, storage, or use of **Confidential Information**;
or

(iii) failure to comply with those parts of an **Organization's** privacy policy that relate to the manner in which an **Organization** accesses, obtains, collects, discloses, destroys, processes, retains, protects, sells, shares, stores, uses, or provides access to, **Confidential Information**;

provided, however, that the foregoing subparagraph (b) shall not apply to the extent that a **Claim** is for an **Employment Practices Violation**, other than employment-related misrepresentation(s) to or employment-related invasion of privacy of an **Employee** of or an applicant for employment with an **Organization** or an **Outside Entity** as described in subparagraphs (5) and (6), respectively, of the definition of **Employment Practices Violation**.

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END 007

ENDORSEMENT# 7 (Continued)

This endorsement, effective **at 12:01AM November 17, 2025**

forms a part of

Policy number: 01-590-53-35

Issued to: *EQUINOX GOLD CORP*

By: *AIG Insurance Company of Canada*

With respect to **Loss** in connection with a **Claim** including both allegations that are excluded from coverage by this endorsement and allegations that are otherwise covered by this policy, the **Insureds** and the **Insurer** agree to use their best efforts to determine a fair and proper allocation of the amounts as between such uncovered and covered allegations.

For purposes of this endorsement, the following definitions shall apply:

“Confidential Information” means any information relating to an identified or identifiable individual or household including, without limitation, information from which an individual may be uniquely and reliably identified or contacted. **Confidential Information** includes, but is not limited to, biometric information, biometric identifiers, or biometric data.

“Data Privacy Law” means:

- (1) the Illinois Biometric Information Privacy Act (BIPA), the California Consumer Privacy Act (CCPA), the General Data Protection Regulation ((EU) 2016/679 (GDPR)), the New York Stop Hacks and Improve Electronic Data Security Act (SHIELD Act), Family Educational Rights and Privacy Act (FERPA), the Health Insurance Portability and Accountability Act (HIPAA), and any rules or regulations of the foregoing promulgated thereunder and amendments thereto, or any similar federal, provincial, territorial, state, local or foreign law or amendment to a law; or
- (2) that part of any federal, provincial, territorial, state, local or foreign law governing or relating to the access, obtainment, collection, disclosure, destruction, processing, retention, protection, profiling, sale, sharing, storage, or use of **Confidential Information**.

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END 007

ENDORSEMENT# 7 (Continued)

This endorsement, effective ***at 12:01AM November 17, 2025***

forms a part of

Policy number: *01-590-53-35*

Issued to: *EQUINOX GOLD CORP*

By: *AIG Insurance Company of Canada*

ALL OTHER TERMS, CONDITIONS AND EXCLUSIONS REMAIN UNCHANGED.



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END 007

ENDORSEMENT# 8

This endorsement, effective **at 12:01AM November 17, 2025**
Policy number: **01-590-53-35**
Issued to: **EQUINOX GOLD CORP**

forms a part of

By: *AIG Insurance Company of Canada*

E-CONSULTANT FIRM AMENDATORY

In consideration of the premium charged, it is hereby understood and agreed that notwithstanding any provision to the contrary (including but not limited to any endorsement attached to this policy), if this policy, other than by this endorsement, defines the term “**E-Consultant Firm**”, such term as used in this policy shall mean any firm hired by the **Insured** (or the **Insured’s** counsel on the **Insured’s** behalf) that is qualified to perform **E-Discovery Consultant Services**, provided that nothing herein shall be deemed a waiver of (or otherwise supersede) any requirements under this policy for the **Insured** to:

- (1) attain the prior written consent of the **Insurer** before incurring **Defence Costs** or any other **Loss** of any kind; or
- (2) retain an approved **Panel Counsel Firm**.

ALL OTHER TERMS, CONDITIONS AND EXCLUSIONS REMAIN UNCHANGED.



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END 008

ENDORSEMENT# 9

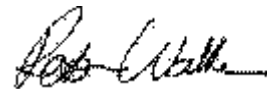
This endorsement, effective *12:01 am November 17, 2025* forms a part of
policy number *01-590-53-35*
issued to *EQUINOX GOLD CORP*

by *AIG Insurance Company of Canada*

PENDING AND PRIOR LITIGATION EXCLUSION FOR EXCESS LIMITS

In consideration of the premium charged, it is hereby understood and agreed that with respect to the *\$3,000,000* excess of the first *\$2,000,000* **Limit of Liability** of this policy, the **Insurer** shall not be liable for any **Loss** in connection with any **Claim** made against any **Insured** alleging, arising out of, based upon or attributable to, as of the *November 17, 2025*, any pending or prior: (1) litigation; or (2) **Enforcement Agency** proceeding, hearing or investigation of which any **Insured** had notice, or alleging or derived from the same or essentially the same facts as alleged in such pending or prior litigation or administrative or regulatory proceeding or investigation.

ALL OTHER TERMS, CONDITIONS AND EXCLUSIONS REMAIN UNCHANGED.



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END 009

ENDORSEMENT# 10

This endorsement, effective **at 12:01AM November 17, 2025**
Policy number: 01-590-53-35
Issued to: **EQUINOX GOLD CORP**

forms a part of

By: *AIG Insurance Company of Canada*

STATUTORY CONDITIONS AMENDATORY

Wherever used in this endorsement: (1) "Insurer" means the insurance company which issued this policy; (2) "Policyholder" means the Named Corporation, Named Entity, Named Insured, Named Organization, Named Sponsor or Insured that is named on the declarations page of this policy; and (3) "Insured" means all other persons or entities afforded coverage under this policy.

In consideration of the premium charged, it is hereby understood and agreed that if this policy is made or deemed to be made in the provinces of Alberta, British Columbia, Manitoba, and Saskatchewan, pursuant to the provisions of the Insurance Acts of Alberta, British Columbia, Manitoba, and Saskatchewan, this endorsement shall apply to any Insured solely to the extent that this endorsement provides terms that are more favourable to the Insured than the other terms of this policy and any endorsements to this policy:

Change of Interest

The Insurer is liable for covered loss or damage occurring after an authorized assignment under the *Bankruptcy and Insolvency Act* (Canada) or a change of title by succession, by operation of law or by death.

Property of Others

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END 010

ENDORSEMENT# 10 (Continued)

This endorsement, effective **at 12:01AM November 17, 2025** forms a part of
Policy number: 01-590-53-35
Issued to: *EQUINOX GOLD CORP*

By: *AIG Insurance Company of Canada*

The Insurer is not liable for loss or damage to property owned by a person other than the Insured unless:

- (a) otherwise specifically stated in the policy, or
- (b) the interest of the Insured in that property is stated in the policy.

Material Change in Risk

- (1) The Insured must promptly give notice in writing to the Insurer or its agent of a change that is:
 - (a) material to the risk, and
 - (b) within the control and knowledge of the Insured.
- (2) If an Insurer or its agent is not promptly notified of a change under subparagraph (1) of this condition, the policy is void as to the part affected by the change.
- (3) If an Insurer or its agent is notified of a change under subparagraph (1) of this condition, the Insurer may:
 - (a) terminate the policy in accordance with the Termination of Insurance condition set forth below, or

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END 010

ENDORSEMENT# 10 (Continued)

This endorsement, effective **at 12:01AM November 17, 2025**

forms a part of

Policy number: 01-590-53-35

Issued to: **EQUINOX GOLD CORP**

By: *AIG Insurance Company of Canada*

- (b) notify the Insured in writing that, if the Insured desires the policy to continue in force, the Insured must, within 15 days after receipt of the notice, pay to the Insurer an additional premium specified in the notice.
- (4) If the Insured fails to pay an additional premium when required to do so under subparagraph (3)(b) of this condition, the policy is terminated at that time and Termination of Insurance condition (2)(a) applies in respect of the unearned portion of the premium.

Termination of Insurance

- (1) The policy may be terminated:
 - (a) by the Insurer giving to the Policyholder 15 days' notice of termination by registered mail or 5 days' written notice of termination personally delivered, or
 - (b) by the Policyholder at any time on request.
- (2) If the policy is terminated by the Insurer:
 - (a) the Insurer must refund the excess of premium actually paid by the Policyholder over the prorated premium for the expired time, but in no event may the prorated premium for the expired time be less than any minimum retained premium specified in the policy, and

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END 010

ENDORSEMENT# 10 (Continued)

This endorsement, effective **at 12:01AM November 17, 2025**

forms a part of

Policy number: 01-590-53-35

Issued to: **EQUINOX GOLD CORP**

By: **AIG Insurance Company of Canada**

- (b) the refund must accompany the notice unless the premium is subject to adjustment or determination as to amount, in which case the refund must be made as soon as practicable.
- (3) If the policy is terminated by the Policyholder, the Insurer must refund as soon as practicable the excess of premium actually paid by the Insured over the short rate premium for the expired time specified in the policy, but in no event may the short rate premium for the expired time be less than any minimum retained premium specified in the policy.
- (4) The 15 day period referred to in subparagraph (1)(a) of this condition starts to run on the day the registered letter or notification of it is delivered to the Policyholder's postal address.

Notice

- (1) Written notice to the Insurer may be delivered at, or sent by registered mail to, the chief agency or head office of the Insurer in the province.
- (2) Written notice to the Insured may be personally delivered at, or sent by registered mail addressed to, the Insured's last known address as provided to the Insurer by the Insured.

ALL OTHER TERMS, CONDITIONS AND EXCLUSIONS REMAIN UNCHANGED.



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END 010

ENDORSEMENT# 11

This endorsement, effective *12:01 am November 17, 2025* forms a part of
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issued to *EQUINOX GOLD CORP*

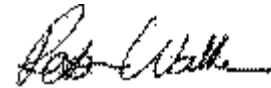
by *AIG Insurance Company of Canada*

FORMS INDEX ENDORSEMENT

The contents of the Policy is comprised of the following forms:

FORM NUMBER	EDITION DATE	FORM TITLE
105928 CAN	07/10	EMPLOYMENT EDGE CANADA DEC
105998 CAN	07/10	EMPLOYMENT EDGE CANADA GUTS
106004	07/10	CRISISFUND APPENDIX
109095 CAN	07/11	AON AMENDATORY ENDORSEMENT FOR THE EMPLOYMENT EDGE
114255	05/19	SEPARATE RETENTION CALIFORNIA CLAIMS
151512 CAN	01/24	LOSS DEFINITION AMENDED TERMINATION LOSS DIFFERENTIAL
C0072 CAN	10/09	US CURRENCY ENDORSEMENT (UNITED STATES)
130527 CAN	10/18	SPECIFIC COUNTRY EXCLUSION
120359	08/15	SPECIFIC ENTITY EXCLUSION (CLAIMS MADE BY OR AGAINST)
136866 CAN	06/20	CONFIDENTIAL INFORMATION EXCLUSION
148630 CAN	05/23	E-Consultant Firm Amendatory
105958 CAN	07/10	PENDING AND PRIOR LITIGATION EXCLUSION FOR EXCESS LIMITS
139855 CAN	12/20	STATUTORY CONDITIONS AMENDATORY
78859	10/01	FORMS INDEX ENDORSEMENT

ALL OTHER TERMS, CONDITIONS AND EXCLUSIONS REMAIN UNCHANGED.



AUTHORIZED REPRESENTATIVE



**CUSTOMER ADVISORY
REGARDING THE ENFORCEMENT OF
ECONOMIC EMBARGOES AND TRADE SANCTIONS**

This Trade Sanction Advisory is part of **AIG Insurance Company of Canada** comprehensive compliance program and is meant to serve as a reminder of the existing applicable legal requirements with respect to Trade Sanctions.

Your rights as a policyholder and payments to you, any insured or claimant, for loss under this policy may be affected by the administration and enforcement of economic embargoes and trade sanctions applicable to you, any insured, claimant and/or to the insurer and their respective controlling entities (hereinafter "Trade Sanctions").

WHAT IS AN ECONOMIC EMBARGO AND/OR TRADE SANCTION?

Trade Sanctions involve the imposition by a country of legal measures to restrict or prohibit trade, services or other economic activity with a target country, entity or individual. For example, the Parliament of Canada has enacted legislation authorizing the imposition of Trade Sanctions through the *United Nations Act*, the *Special Economic Measures Act* and some provisions of the *Export and Import Permits Act*.

Depending upon the identity, domicile, place of incorporation or nationality of the policyholder, insured, claimant, insurer, or the parent company and ultimate controlling entity of the policyholder, insured, claimant or insurer, or the country where the claim arises, Trade Sanctions of foreign countries, including the United States of America, may be applicable. The application of sanctions could necessitate the seizure or freezing of property, including but not limited to the payment of a claim.

Existing Trade Sanctions can be amended, and new Trade Sanctions can be imposed, at any time.

OBLIGATIONS PLACED ON US AS A RESULT OF TRADE SANCTIONS

If we determine that you or any insured, additional insured, loss payee, or claimant are on a prohibited list or are connected to a sanctioned country, entity or individual, or a prohibited activity, as designated by the relevant Trade Sanction, we may be required to comply with the requirements of the applicable Trade Sanction, which by way of example, may include blocking or "freezing" property and payment of any funds and the reporting of such occurrences to the relevant authorities within the prescribed time periods, if any.

POTENTIAL ACTIONS BY US

Depending upon the requirements of the relevant Trade Sanction:

1. We may be required to immediately cancel your coverage effective on the day that we determine that we have transacted business with an individual or entity associated with your policy on a prohibited list or connected to a sanctioned country as described in the relevant Trade Sanction.
2. If we cancel your coverage, you may not receive a return premium unless permitted pursuant to the relevant Trade Sanction. All blocked or frozen funds will be placed in an interest bearing blocked account established on the books of a financial institution.
3. We may not pay a claim, accept premium or exchange monies or assets of any kind to or with individuals, entities or companies (including a bank) on a prohibited list or connected to, or carrying on business in, a sanctioned country as designated by the relevant Trade Sanction. Furthermore, we may not defend or provide any other benefits under your policy to individuals, entities or companies on a prohibited list or connected to, or carrying on business in, a sanctioned country as designated by the relevant Trade Sanction.